ATOMUS KCP INVESTMENTS HOLDINGS LLC

SUBSCRIPTION AGREEMENT

INVESTOR UNITS

Offering Price
$1.00 per Investor Unit

THE SECURITIES TO BE ISSUED PURSUANT TO THIS SUBSCRIPTION AGREEMENT HAVE NOT BEEN REGISTERED WITH THE UNITED STATES SECURITIES AND EXCHANGE COMMISSION, OR THE SECURITIES COMMISSION OR REGULATORY AUTHORITY OF ANY OTHER STATE PURSUANT TO EXEMPTIONS FROM REGISTRATION UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT") AND THE LAWS OF ANY SUCH STATE. THIS SUBSCRIPTION AGREEMENT SHALL NOT CONSTITUTE AN OFFER TO SELL OR A SOLICITATION OF AN OFFER TO BUY THE SECURITIES TO BE SOLD PURSUANT TO THIS SUBSCRIPTION AGREEMENT IN ANY JURISDICTION IN WHICH SUCH OFFER OR SOLICITATION WOULD BE UNLAWFUL.

THE SECURITIES TO BE ISSUED PURSUANT TO THIS SUBSCRIPTION AGREEMENT MAY NOT BE SOLD, PLEDGED, TRANSFERRED OR ASSIGNED, EXCEPT PURSUANT TO AN EFFECTIVE REGISTRATION STATEMENT UNDER THE SECURITIES ACT AND UNDER APPLICABLE STATE SECURITIES LAWS, OR IN A TRANSACTION WHICH IS EXEMPT FROM REGISTRATION UNDER THE PROVISIONS OF THE SECURITIES ACT AND UNDER THE PROVISIONS OF APPLICABLE STATE SECURITIES LAWS; AND IN THE CASE OF AN EXEMPTION, ONLY (A) IN ACCORDANCE WITH THE COMPANY'S AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT; AND (B) IF THE COMPANY HAS RECEIVED AN OPINION FROM COUNSEL ACCEPTABLE TO THE COMPANY THAT SUCH TRANSACTION DOES NOT REQUIRE REGISTRATION OF THE SECURITIES.

THIS SUBSCRIPTION AGREEMENT (this "Agreement"), made as of April [__], 2025, between Atomus KCP Investments Holdings LLC, a Delaware limited liability company, with offices at 161 High Road, Newbury, MA 01951 (the "Company") and the undersigned subscriber (the "Subscriber" or "Member").

WHEREAS, the Company desires to sell Investor Units (as defined in the LLC Agreement (as defined hereinafter)) (the "Investor Units") of the Company at a purchase price of One Dollar and 00/100 Cents ($1.00) per Investor Unit pursuant to the terms of this Agreement.

NOW, **THEREFORE**, for and in consideration of the premises and the covenants hereinafter set forth, the parties hereto do agree as follows:

1. The Subscription. Subject to the terms and conditions hereinafter set forth, the Subscriber hereby subscribes to purchase [_____ (_____)] Investor Units of the Company, for an aggregate purchase price equal to [_____ ($_____)] (the "Subscription Price"). The Subscription Price is payable by certified or bank check made payable to "Atomus KCP Investments Holdings LLC" or by wire transfer of funds, contemporaneously with the execution and delivery of this Agreement. The Company has the unrestricted right to condition its acceptance of the Subscriber's subscription, in whole or in part, upon the receipt by the Company of any additional instruments (including any designations, representations, warranties, covenants), documentation and information requested by the Company in its sole discretion, including an opinion of counsel to the Subscriber, evidencing the legality of an investment in the Company by the Subscriber and the authority of the person executing this Agreement on behalf of the Subscriber (collectively the "Additional Documents"), in addition to these Subscription Documents.

2. Representations and Warranties. In order to induce the Company to enter into this Agreement and to sell the Investor Units in accordance herewith, the Subscriber hereby represents and warrants to the Company for itself as follows:

(a) Authority and Non-Contravention. The Subscriber has full right, authority and power to enter into this Agreement and all agreements, documents and instruments executed by the Subscriber pursuant to this Agreement and to carry out the transactions contemplated hereby and thereby. This Agreement and all agreements executed by the Subscriber in connection with the transactions contemplated hereunder are valid and binding obligations of the Subscriber, enforceable against the Subscriber in accordance with their respective terms except (i) as limited by applicable bankruptcy, insolvency, reorganization, moratorium or other laws of general application affecting enforcement of creditors' rights; and (ii) general principles of equity that restrict the availability of equitable remedies. The execution, delivery and performance by the Subscriber of this Agreement and all agreements executed by the Subscriber in connection with the transactions contemplated hereunder will not result in any conflict, violation, breach, or default under or in respect of (A) any charter documents of the Subscriber; or (B) any judgment, decree, order, statute, rule, or regulation binding on or applicable to the Subscriber.

(b) Accredited Investor. The Subscriber hereby represents and warrants to the Company that it is an Accredited Investor within the meaning of Rule 501(a) under the Securities Act and has completed Exhibit B attached hereto indicating how the Subscriber qualifies

as an Accredited Investor. The Subscriber is acquiring the Investor Units for investment for its own account, with no present intention of dividing its participation with others or reselling or otherwise distributing the same in violation of the Securities Act, or any applicable state securities laws. The Subscriber agrees that the Subscriber will not sell or otherwise transfer any of such securities unless they are registered under the Securities Act or unless an exemption from such registration is available.

(c) Disclosure of Information and Risk of Investment. The Subscriber has sufficient knowledge and experience in business and financial matters to evaluate the Company, its proposed activities and the risks and merits of this investment. The Subscriber has the ability to accept the high risk and lack of liquidity inherent in this type of investment and has the capacity to protect the Subscriber's own interest in connection with the Subscriber's proposed investment in the Company. The Subscriber had an opportunity to discuss the Company's business, management and financial affairs with and management of the Company. Subscriber has also had the opportunity to ask questions of and receive answers from the Company and its management regarding the terms and conditions of this investment. Other than as set forth in this Agreement or in the LLC Agreement (and any separate agreement in writing with the Company executed in conjunction with the Subscriber's subscription for the Investor Units), the Subscriber is not relying upon any information, representation or warranty by the Company, its Manager (as defined in the LLC Agreement), or any of their respective agents or representatives in determining to invest in the Company. The Subscriber has reviewed the any other background materials made available by the Company, including without limitation, the Risk Factors attached hereto as Exhibit C (the "Risk Factors"). The Subscriber understands the significant risks of this investment, including, without limitation, those set forth in the Risk Factors and acknowledges that the Subscriber may suffer complete loss of the Subscriber's investment in the Company. The Subscriber is able to bear the economic risk of such investment, including a complete loss. The Subscriber has the capacity to protect its own interests in connection with the purchase of the Securities by virtue of its business or financial expertise. The Subscriber has consulted, to the extent deemed appropriate by the Subscriber, with the Subscriber's own advisers as to the financial, tax, legal and other matters concerning this investment and on that basis and the basis of its own independent investigations, without the assistance of the Company, its Manager, or any of their respective agents or representatives, believes that an investment in the Company is suitable and appropriate for the Subscriber. Subscriber hereby represents and warrants that it has had its own independent legal counsel review and approve all of the legal documents executed in connection with its Subscription.

(d) Information Provided. The Subscriber hereby represents and warrants that the Subscriber has been furnished by the Company with all information regarding the Company which the Subscriber has requested or desires to review and that the Subscriber has been afforded the opportunity to ask questions of and receive answers from duly authorized officers or other representatives of the Company concerning the terms and conditions of the Agreement, the Company, the Investor Units and that the Subscriber has carefully read and understands this Agreement. All questions of the Subscriber related to the Subscriber's investment in the Company have been answered to the full satisfaction of the Subscriber and the Subscriber has received all the information the Subscriber considers necessary or appropriate for deciding whether to purchase the Investor Units.

(e) No Tax Advice. The Subscriber hereby acknowledges that the purchase of the Investor Units may cause tax consequences and that the Company has not provided the Subscriber with tax advice or information. The Subscriber acknowledges that the Subscriber must retain its own professional advisors to evaluate the tax and other consequences of an investment in the Company.

(f) No Review, Evaluation or Endorsement. The Subscriber hereby acknowledges that this Agreement and the sale of the Investor Units hereunder have not been reviewed, evaluated or endorsed by the Securities and Exchange Commission or the securities regulatory authority of any state and that the sale of the Investor Units pursuant to this Agreement is intended to be a non-public offering. The Subscriber understands that the Investor Units have not been and will not be registered under the Securities Act or approved or disapproved by the U.S. Securities and Exchange Commission or by any state securities administrator or registered or qualified under any state securities law. The Investor Units are being offered and sold in reliance on exemptions from the registration requirements of both the Securities Act and applicable state securities laws, and the Investor Units may not be transferred by the Subscriber except in compliance with the LLC Agreement and applicable laws and regulations.

(g) No Public Market; Restricted Securities. The Subscriber understands that there is no public market for any of the Investor Units and none is likely to develop in the foreseeable future, if ever. The Subscriber hereby further agrees and understands that the Investor Units may not be sold or transferred by the Subscriber unless they have been registered under the Securities Act, or an exemption from registration is available under the Securities Act and further understands that (i) the Company has no obligation or intention to register the Investor Units for resale under any federal or state securities laws, to register the Company under the Investment Company Act of 1940 or to take any action (including the filing of reports or the publication of information required by Rule 144 under the Securities Act or the Investment Company Act of 1940) which would make available any exemption from the registration requirements of such Acts; and (ii) it is likely the Subscriber therefore may be precluded from selling or otherwise transferring or disposing of the Investor Units or any portion thereof and may therefore have to bear the economic risk of investment in the Investor Units for an indefinite period. The Subscriber further understands that at such time, if ever, as a public market develops for any of the Investor Units, Rule 144 under the Securities Act requires, among other conditions, a one (1) year holding period prior to the resale (in limited amounts) of securities acquired in a non-public offering without having to satisfy the registration requirements of the Securities Act. The Subscriber understands that the Company makes no representation or warranty regarding its fulfillment in the future of any reporting requirements under the Securities Exchange Act of 1934, as amended, or its dissemination to the public of any current financial or other information concerning the Company, as is required by Rule 144 under the Securities Act as one (1) of the conditions of its availability. The Subscriber understands and hereby acknowledges that the Company is under no obligation to register the Investor Units under the Securities Act. The Subscriber hereby acknowledges that the Company will permit the transfer of the Investor Units out of the Subscriber's name only in accordance with the Company's LLC Agreement and when the Subscriber's request for transfer is accompanied by an opinion of counsel reasonably satisfactory to the Company and/or its counsel that neither the sale nor the proposed transfer will result in a violation of the Securities Act or any applicable state securities laws.

(h) **Restrictive Legend.** The Subscriber consents to the placement of a legend on any instrument, certificate or other document, if any, evidencing the Investor Units that such Investor Units have not been registered under the Securities Act and setting forth or referring to the restrictions on transferability and sale thereof.

(i) **Bad Actor.** Neither the Subscriber, nor, if not a natural person, any of its shareholders, members, managers, general or limited partners, directors, affiliates or executive officers, is subject to any of the "Bad Actor" disqualifications described in Rule 506(d)(1)(i) to (viii) under the Securities Act (a "Disqualification Event"), except for a Disqualification Event covered by Rule 506(d)(2) or (d)(3).

(j) **Capacity.**

(i) If the Subscriber is a natural person, the Subscriber (A) has full legal capacity to execute and deliver this Agreement and to perform the Subscriber's obligations in this Agreement and (B) is a bona fide resident of the state or jurisdiction of residence set forth on Exhibit A and has no present intention of becoming a resident of any other state or jurisdiction.

(ii) If the Subscriber is not a natural person, the Subscriber (A) is duly organized and has all requisite power to execute and deliver this Agreement and perform its obligations this Agreement requires, (B) has taken all necessary action to duly authorize the execution, delivery and performance of this Agreement and (C) was not organized for the specific purpose of acquiring the Investor Units.

(k) **Information Accurate and Complete.** The Subscriber's information provided in this Agreement (including the exhibits attached hereto) is complete and accurate and may be relied upon by the Company and its Manager. Additionally, by executing the Agreement, the Subscriber hereby acknowledges and agrees that any identifying information or documentation regarding the Subscriber and/or its suitability to invest in the Company that was furnished by the Subscriber to the Company, its Manager, or their respective affiliates online, or via e-mail, whether in connection with this subscription or previously, may be made available to the Manager, remains true and correct in all respects and may, at the discretion of the Manager, be incorporated by reference herein (collectively, "Supporting Documents").

(l) **Understanding of Restrictions.** The Subscriber hereby understands the rights, obligations and restrictions of Members, including that withdrawals of capital from the Company by Members are limited by the terms of the LLC Agreement.

(m) **Understanding of Risks.** The Subscriber hereby understands the meaning and legal consequences of the representations and warranties made by the Subscriber in this Agreement and the LLC Agreement, and that the Company and its Manager are relying on those representations and warranties in making its determination to accept or reject this Agreement.

3. **Limited Liability Company Agreement.** The Investor Units and the Company shall be governed by that certain Amended and Restated Limited Liability Company Agreement of the Company, (the "LLC Agreement") in substantially the form attached hereto as Exhibit D, which the Subscriber hereby acknowledges receipt of and agrees to execute a Joinder Agreement

to the LLC Agreement contemporaneous with the Subscriber's execution hereof. The Subscriber acknowledges and agrees that the LLC Agreement provides that the Company may enter into a joint venture or partnership with an institutional investor and that this transaction would likely require the LLC Agreement to be amended and the Company to invest substantially all of its capital and/or assets to such joint venture or partnership. Any such amendments would be unlikely to negatively effect the rights provided to the Subscriber under the LLC Agreement, and if the Subscriber does not approve of the amendments, then the Company would buyout the Subscriber's Investor Units for an amount in cash equal to the Subscription Price; however, the Company may not have the right to dictate the actions or control the business decisions of the joint venture or partnership.

4. Miscellaneous.

(a) Survival. The representations and warranties made in this Agreement shall survive the delivery of this Agreement and the purchase and sale of the Investor Units hereunder without time limitation.

(b) Benefit. This Agreement and all of the rights and obligations hereunder are binding upon and inure to the benefit of the parties hereto and their respective heirs, personal representatives, successors and permitted assigns. No party hereto may assign its rights or delegate its obligations hereunder, without the prior written consent of the Company and the Subscriber.

(c) Notices. All notices, requests, demands and other communications provided for in this Agreement shall be in writing and shall be deemed to have been given at the time when personally delivered, or mailed at any general or branch United States post office, enclosed in a registered or certified post-paid envelope, return receipt requested, addressed to the address of the party stated in this Agreement or to such other address as such party may have fixed by notice; provided, however, that any notice of change of address shall be effective only upon receipt.

(d) Entire Agreement. This Agreement constitutes the entire understanding and agreement between the parties hereto with respect to the subject matter hereof, integrates all prior understandings, agreements and representations with respect thereto, and may not be altered, amended or modified in any manner except by the written consent of the Company and the Subscriber, unless otherwise set forth herein.

(e) Severability. If any part, clause, provision or condition of this Agreement is held or declared to be invalid or inoperative, it will be enforced to the maximum extent permitted by law, and such determination will not affect any other clause, provision or condition hereof. The remainder of this Agreement, disregarding such portion, will nevertheless continue in full force and effect as though such provision had not been contained herein.

(f) Governing Law; Jurisdiction. This Agreement shall be governed, construed, and interpreted in accordance with the laws of the State of Delaware without regard to principles of conflicts of law or to the laws of any other jurisdiction. Any proceeding arising out of or relating to this Agreement must be brought in the courts of the State of New York, County of Erie, and each of the parties hereto hereby irrevocably submits to the exclusive jurisdiction of each such court in any such proceeding, waives any objection it may now or hereafter have to venue or

to convenience of forum, agrees that all claims in respect of the proceeding shall be heard and determined only in any such court and agrees not to bring any proceeding arising out of or relating to this Agreement in any other court.

(g) **Counterparts.** This Agreement may be executed in one (1) or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one (1) and the same document.

(h) **Fees and Expenses.** Each party shall be responsible for its own fees and expenses incurred in connection with the preparation of this Agreement and the consummation of the transactions contemplated hereby.

(i) **No Waiver.** It is agreed that a waiver of any provision of this Agreement must be in writing executed by the party providing the waiver, and a waiver by either party of a breach of any provision of this Agreement shall not operate, or be construed, as a waiver of any subsequent breach by that same party.

(j) **Assignability.** Neither this Agreement nor any right, remedy, obligation or liability arising hereunder or by reason hereof shall be assignable by either the Company or the undersigned without the prior written consent of the other party.

(k) **Further Assurances.** The Subscriber hereby agrees to execute and deliver all such further documents, agreements and instruments and take such other and further action as may be necessary or appropriate to carry out the purposes and intent of this Agreement.

BY SIGNING THIS AGREEMENT, THE SUBSCRIBER ACKNOWLEDGES THAT ANY MISSTATEMENT MAY RESULT IN AN IMMEDIATE REDEMPTION OF SUBSCRIBER'S INVESTOR UNITS.

[Signature Page Follows]

SIGNATURE PAGE TO SUBSCRIPTION AGREEMENT

INDIVIDUALS

IN WITNESS WHEREOF, the Subscriber hereby executes this Agreement as of the date set forth below.

Date: _____

Subscription Amount: $_____

Subscriber #1:

_____
(*Signature*)

_____
(*Print Name*)

Subscriber #2: *(if more than one individual)*

_____
(*Signature*)

_____
(*Print Name*)

SIGNATURE PAGE TO SUBSCRIPTION AGREEMENT

ENTITIES

IN WITNESS WHEREOF, the Subscriber hereby executes this Agreement as of the date set forth below.

Date: _____

Subscription Amount: $_____

Subscriber:

_____
(Name of Subscriber)

_____
(*Signature of Signatory*)

_____
(*Print Name of Signatory*)

_____
(*Title of Signatory*)

ACCEPTANCE OF SUBSCRIPTION

By signing below, the Company hereby accepts Subscriber's subscription for Investor Units in the amount indicated on the Signature Page to the Subscription Agreement, and hereby authorizes this signature page to be attached to the Subscription Agreement related to the Company.

ATOMUS KCP INVESTMENTS HOLDINGS LLC

BY: ATOMUS EQUITY PARTNERS LLC

BY: _____
NAME: JACKSON RIMPAS
TITLE: MANAGER

BY: _____
NAME: LUKE PRENDERGAST
TITLE: MANAGER

DATE: _____

EXHIBIT A
SUBSCRIBER INFORMATION

1. Name of Subscriber:

_____

2. Subscription Amount:

_____

3. U.S. Taxpayer Identification Number or Social Security Number (if applicable):

_____

4. Jurisdiction of Organization (for entities):

_____

5. Subscriber's Address of Residence or Principal Place of Business:

_____

_____

6. Address for Delivery and Notices (if different from above):

_____

_____

7. Phone Number:

_____

8. Email Address:

_____

9. For all Subscribers:

☐ I agree to electronic delivery of disclosures and Schedule K-1

10. For Non-Individuals (check one):

☐ Manager

☐ Limited Partnership

☐ Limited Liability Company

☐ Corporation

☐ Individual Retirement Account (custodian or trustee must sign)

☐ Trust (other than IRA) (trustee must sign)

☐ Qualified Plan (other than IRA)

☐ Other: _____

11. For Individuals (check one)
    - ☐ Single Individual (one signatory required)
    - ☐ Tenants-in-Common (each individual must sign)
    - ☐ Community Property (one signatory required)
    - ☐ Other: _____

12. For Investors who are not a U.S. Persons (as defined in Section 2(s) above):

☐ Copy of Passport (attached)

13. The following IRS form is filled out, signed, and attached (check one):
    - ☐ W-9 (for Investors who are U.S. Persons)
    - ☐ W-8BEN (for Individual Investors who are <u>not</u> a U.S. Person)
    - ☐ W-8BEN-E (for Non-Individual Investors who are <u>not</u> a U.S. Person)

EXHIBIT B
ACCREDITED INVESTOR STATUS

Subscriber makes one (1) or more of the following representations regarding Subscriber's status as an *"**Accredited Investor**"* (within the meaning of Rule 501 under the Securities Act), and has checked and signed the applicable representation*:*

☐ **(i)** If an individual, Subscriber has a net worth[1], either individually or upon a joint basis with Subscriber's spouse, of at least $1,000,000, ***or*** has had an individual income in excess of $200,000 for each of the two most recent years, or a joint income with Subscriber's spouse, or spousal equivalent, in excess of $300,000 in each of those years, and has a reasonable expectation of reaching the same income level in the current year.

☐ **(ii)** If an individual, Subscriber holds, in good standing, one of the following certifications or designations administered by the Financial Industry Regulatory Authority, Inc. ("***FINRA***"): the Licensed General Securities Representative (Series 7), Licensed Investment Adviser Representative (Series 65), or Licensed Private Securities Offerings Representative (Series 82).

☐ **(iii)** If an individual, Subscriber is a "knowledgeable employee"[2] within the meaning prescribed under Rule 3c-5(a)(4) of the Investment Company Act of 1940, as amended (the "***Investment Company Act***") of a private fund exempt from registration pursuant to Rule 3(c)(1) or Rule 3(c)(7) of the Investment Company Act.

☐ **(iv)** Subscriber is an *irrevocable* trust with total assets in excess of $5,000,000 whose purchase is directed by a person with such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of the prospective investment.

☐ **(v)** Subscriber is a bank, insurance company, investment company registered under the Company Act, a broker or dealer registered pursuant to Section 15 of the Securities Exchange Act of 1934 (the "***Exchange Act***"), a state-registered or SEC-registered investment adviser, an exempt reporting adviser pursuant to Section203(l) or 203(m) of

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1 In calculating the Investor's net worth: (i) the Investor's primary residence shall not be included as an asset; (ii) indebtedness that is secured by the Investor's primary residence, up to the estimated fair market value of the primary residence at the time of the Closing, shall not be included as a liability (except that if the amount of such indebtedness outstanding at the time of the Closing exceeds the amount outstanding 60 days before such time, other than as a result of the acquisition of the primary residence, the amount of such excess shall be included as a liability; and (iii) indebtedness that is secured by the Investor's primary residence in excess of the estimated fair market value of the primary residence at the time of the Closing shall be included as a liability. In calculating the Investor's joint net worth with the Investor's spouse, the Investor's spouse's primary residence (if different from the Investor's own primary residence) and indebtedness secured by such primary residence should be treated in a similar manner.

2 "knowledgeable employee" means any natural person who is: (a) an executive officer, director, trustee, general partner, advisory board member, or person serving in a similar capacity, of the Company; or (b) an employee of the Company or an affiliated management person of the Company (other than an employee performing solely clerical, secretarial or administrative functions with regard to such company or its investments) who, in connection with his or her regular functions or duties, participates in the investment activities of the Company, *provided* that such employee has been performing such functions and duties for or on behalf of the Company or the affiliated management person of the Company, or substantially similar functions or duties for or on behalf of another company for at least 12 months.

the United States Investment Advisers Act of 1940, as amended (the "***Advisers Act***"), a rural business investment company (RBIC) as defined in Section 384A of the Consolidated Farm and Rural Development Act, a business development company, a Small Business Investment Company licensed by the United States Small Business Administration, a plan with total assets in excess of $5,000,000 established and maintained by a state for the benefit of its employees, or a private business development company as defined in Section 202(a)(22) of the Advisers Act.

☐ **(vi)** Subscriber is an employee benefit plan and *either* all investment decisions are made by a bank, savings and loan association, insurance company, or registered investment advisor, *or* Subscriber has total assets in excess of $5,000,000 *or*, if such plan is a self-directed plan, investment decisions are made solely by persons who are accredited investors.

☐ **(vii)** Subscriber is an Indian tribe, governmental body, or an entity organized under the law of a foreign county, which owns investments, as defined in Rule 2a51-1(b) of the Investment Company Act, in excess of $5,000,000.00, and was not formed for the specific purpose of investing in the securities offered.

☐ **(viii)** Subscriber is a family office, as defined in Rule 202(a)(11)(G)-1 of the Advisers Act (the "***Family Office Rule***"), or a "family client" of such family office as such term is defined in the Family Office Rule: (a) with assets under management in excess of $5,000,000.00, (b) not formed for the purpose of acquiring the Interests, and (c) the acquisition of the Interests is directed by a person who has such knowledge and experience in financial and business matters that he or she is capable of evaluating the merits and risks of acquiring the Interests.

☐ **(ix)** Subscriber is a corporation, partnership, limited liability company or business trust, not formed for the purpose of acquiring the Interests, or an organization described in Section 501(c)(3) of the Code, in each case with total assets in excess of $5,000,000.

☐ **(x)** Subscriber is an entity in which **all** of the equity owners, or a *grantor or revocable trust* in which **all** of the grantors and trustees, qualify under clause (i), (ii), (iii), (iv) or (v) above or this clause (vi). **If Subscriber belongs to this investor category only, list on a separate sheet to be attached hereto the equity owners (or grantors and trustees) of Subscriber and the investor category which each such equity owner (or grantor and trustee) satisfies.**

☐ **(xi)** Subscriber cannot make any of the representations set forth in clauses (i) through (x) above.

EXHIBIT C

RISK FACTORS

Prospective Subscribers should carefully consider the following risk factors, together with all the other information, including all other risk factors and conflicts of interest relating to an investment in the Company, including those in this Agreement and all materials provided, before deciding to subscribe for the Investor Units. As a result of these factors, as well as other risks inherent in any investment, there can be no assurance that the Company will be able to meet its investment objectives or otherwise be able to successfully carry out its investment program. The risks described below are not the only risks relating to an investment in the Company and other risks also may adversely affect an investment in the Company. As used in these Risk Factors, the term "Company" shall mean each of KCP Atomus Investment Holdings LLC, and its direct and indirect subsidiaries, including, without limitation, Kitchen Concepts Plus Holdings LLC (a primary holding company), KCP Intermediate Holdings LLC (an intermediate holding company) and a to-be formed operating entity, Kitchen Concepts Plus, LLC (name subject to change).

Forward Looking Information.

This Agreement and all materials provided includes forward-looking statements that involve risk and uncertainty including, without limitation, risks inherent in the private equity or private investment universe. Sentences or phrases that use the words such as "expects," "believes," "anticipates," "hopes," "plans," "may," "can," "will," and others, are often used to flag forward-looking statements, but their absence does not mean a statement is not forward-looking. Such statements reflect the Company's opinion as of the date of this Agreement and all materials provided and are designed to help readers understand the Company's thinking. By their very nature, however, such statements are subject to certain risks and uncertainties that could cause actual results to differ materially and adversely from those illustrated. Subscribers are cautioned not to place undue reliance on these forward-looking statements. The Company undertakes no obligation to release publicly any revisions to these forward-looking statements that may be made to reflect events or circumstances after the date of this Agreement and all materials provided, or to reflect the occurrence of unanticipated events.

Business Operations May Prove Unsuccessful.

An investment in the Company involves a high degree of risk. In general, financial and operating risks confronting entities such as the Company can be significant. While targeted returns should reflect the perceived level of risk in any investment situation, there can be no assurance that investors or the Company will be adequately compensated for risks taken. A loss of an investor's entire investment is possible. The timing of profit realization is highly uncertain. The Company does not have control of various factors and risks that may affect the business of the Company, and therefore, there can be no assurance that the Company will achieve profitability or otherwise be successful.

Illiquidity.

The Company is intended for long-term investors who can accept the risks associated with investing in a company that involves a high degree of financial risk and is illiquid. The Investor Units in the Company

offered to the Subscribers have not been registered under the Securities Act, and no such registration is contemplated. Each Subscriber acquiring the Investor Units in the Company will be required to represent that it is purchasing such Investor Units for its own account for investment purposes and not with a view to resale or distribution and agree not to sell all or any part of its interest without registration under applicable federal and state securities laws unless there are available exemptions thereunder. In addition, except in very limited circumstances and only with the consent of the Manager, the Members may not sell, transfer, exchange, assign, pledge, hypothecate or otherwise dispose of their Investor Units in the Company (or any portion thereof) or, if the Member is an entity, allow the transfer of any direct or indirect interest of such Member that would result in a change in the management and/or control of the Member. The fact of non-registration, together with the transfer restrictions set forth in the LLC Agreement makes an investment in the Company extremely illiquid. Accordingly, prospective Investor should be aware that they may be required to bear the financial risk of their investments for an extended period of time.

If Our Manufacturers are Unable to Produce our Goods on Time or to our Specifications, we could Suffer Lost Sales.

The Company does not own or operate any manufacturing or distributions facilities and therefore depends upon third party vendors and suppliers for the manufacture and supply of all of the products necessary for the Company's business. The Company cannot control all the various factors which may include, but are not limited to, inclement weather, natural disasters and acts of terrorism, which might affect a manufacturer's and/or supplier's ability to produce and/or ship such products in a timely manner or to meet the Company's quality standards. Late delivery of products or delivery of products that do not meet the Company's quality standards could cause the Company to either delay timely delivery of the merchandise to its customers or miss the delivery date requirements of its customers. These events could cause the Company to fail to meet its customer expectations or cause its customers to cancel orders, which could result in lost sales or damage to the Company's reputation.

Uncertainty Regarding the Housing Market, Economic Conditions, Political and Social Climate, Public Health Issues, and Other Factors Beyond the Company's Control Could Adversely Affect Demand for the Company's Products and Services, its Cost of Doing Business, and its Financial Performance.

The Company's financial performance depends significantly on the stability of the housing and home improvement markets, as well as general economic conditions, including, but not limited to, changes in gross domestic product. Adverse conditions in or uncertainty about these markets, the economy, or the political and social climate could adversely impact the Company's customers' confidence or financial condition, causing them to decide against purchasing home improvement products and services, causing them to delay purchasing decisions, or impacting their ability to pay for products and services. Other factors beyond the Company's control – including, but not limited to, unemployment and foreclosure rates; inventory loss due to theft (including as a result of organized retail crime); interest rate fluctuations, including central banks' actions to control inflation; inflation or deflation; fuel and other energy costs; raw material or other shortages; labor and healthcare costs; the availability of financing; the state of the credit markets; including mortgages, home equity loans and consumer credit; changes in tax rates and policy; weather and natural disasters (including potential impacts of climate change); acts of terrorism or violence; public health issues; geopolitical or military conflicts or acts of war, as well as any related sanctions or other government or private responses; and civil unrest, could further adversely affect demand for the Company's products and services, its cost of doing business, and its financial performance. If the Company experiences

inflation or deflation at a level beyond its ability to respond effectively, the Company may not be able to adjust prices to sufficiently offset the effects without negatively impacting consumer demand or margins.

The Company May Not Timely Identify or Effectively Respond to Consumer Needs, Expectations, or Trends, which could adversely affect the Company's Relationship with its Customers and the Demand for its Products and Services..

The success of the Company's business depends in part on its ability to identify and respond promptly to evolving trends in demographics; shifts in customer preferences, expectations, and needs; changes in the macroeconomic environment; and unexpected weather conditions, natural disasters, or public health issues that impact its customers, while also managing appropriate inventory levels, labor needs, and maintaining an excellent customer experience. It is difficult to successfully predict the products and services the Company's customers will demand. As the Company's customers expect a more personalized experience, its ability to collect, use, retain and protect relevant customer data is important to the Company's ability to effectively meet their expectations. Customer preferences and expectations related to sustainability of products, operations, and expectations about the methods by which they purchase and receive products and services are also changing and becoming more demanding. The Company must continually anticipate and adapt to these changes by continuing to enhance the quality of the services it provides. Failure to provide a relevant and effective customer experience in a timely manner that keeps pace with customer expectations; maintaining appropriate quality of service; differentiating the customer experience; or to otherwise timely identify or respond to changing customer preferences, expectations, and home improvement needs could adversely affect the Company's relationship with its customers and demand for its products and services.

Competition.

There can be no assurance that the Company will be able to compete successfully against existing companies or new entrants to the marketplace. Competition can come from several sources, including from companies currently providing similar products or services, as well as from new marketplace participants. The ability of competitors to the Company to obtain and retain customers may, among other events, have a material adverse effect upon the business of the Company.

General Economic Factors.

The Company may be adversely affected from time to time by such matters as changes in general economic conditions, inflation, changes in taxes (at the federal and state level), prices and costs and other factors of a general nature that are beyond the control of the Company. There are many outside factors that could have an impact on the success of the Company.

Management of Company and Lack of Track Record.

The Manager will oversee the management of the operations of the Company. Accordingly, Subscribers must carefully evaluate the personal experience and business performance of such management team. There can be no assurance that the members of the management team will be successful in their operation of the Company or that they will remain affiliated with the Manager or the Company.

Lack of Control.

The Company's investors will not have the right to make decisions with respect to the management of the Company or other realization of any investment made by the Company, or most other decisions regarding the Company's business and affairs. Additionally, the management of the Company is vested solely in the Manager. The rights and obligations of Subscribers will be subject to the limitations set forth in the LLC Agreement and except for the rights specifically reserved to them by the LLC Agreement and applicable law, Subscribers will have no part in the management and control of the Company. In connection with the management of the Company's business, the Manager and its principals and affiliates will devote only such time to Company matters as they, in their sole discretion, deem appropriate. Additionally, the Company invests its capital, or contributes its assets, into a joint venture or partnership with other investors that may have the right to dictate the actions and control the business decisions of the partnership without the Company's consent.

Absence of Recourse against the Manager.

The LLC Agreement limits the circumstances under which the Manager, its affiliates, and each of their respective officers, directors, members, partners, shareholders, employees, and consultants or agents, and representatives can be held liable to the Company or its Subscribers. As a result, Subscribers may have a more limited right of action in certain cases than they would in the absence of this provision.

Investment in Joint Ventures without Control

The Manager may decide to invest the capital, or contribute the assets, of the Company into a joint venture or partnership with other investors that may contribute a greater amount of capital into the partnership and/or have the right to dictate the actions and control the business decisions of the partnership without the Company's consent.

No Public Market.

There are significant restrictions on the ability to sell or transfer Investor Units in the Company. There is no public market for the Investor Units, and, in addition, the Investor Units are being sold in reliance upon exemptions from registration under the Securities Act and applicable state securities laws. As a result, the Units may not be sold unless they are subsequently registered under the Securities Act and applicable state securities law, if so required, or unless an opinion of counsel or other evidence satisfactory to the Manager is obtained that states that registration is not required. In addition, any sale, transfer, assignment, or pledge of a Unit in the Company must be approved by the Manager. As a result of these restrictions, Subscribers may not be able to liquidate their investment even in the case of emergency or otherwise. The restrictions may also influence the price an Investor would receive if a transfer were to occur.

Phantom Income.

Each Subscriber will be required to take into account its distributive share of all items of income, gain, loss, deduction and credit generated by the Company, whether or not distributed. While the Company's ultimate investment is held through an entity taxed as a c-corporation to mitigate phantom income risk during the Company's operating period, there is a chance that the Company may generate taxable income and it is possible that a Subscriber's distributive share of taxable income resulting from his or her Investor Units will exceed its share of cash distributions attributable hereto. No assurance can be given that the Company will

be able to make cash distributions to cover such tax liabilities as they arise. The same tax consequences may result from a sale or transfer of Investor Units, whether voluntarily or involuntarily, and may produce ordinary income or capital gain or loss. Accordingly, each Subscriber should ensure that it has sufficient cash flow from other sources to pay all tax liabilities resulting from such investor's ownership interest in the Company.

Delayed Schedule K-1s.

The Manager will endeavor to provide a Schedule K-1 to each Member for any given calendar year prior to April 15 of the following year. In the event that the Schedule K-1 is not available by such date, a Member may have to pay taxes based on an estimated amount.

Side Letters.

The Company may from time to time enter into letter agreements or other similar agreements with one (1) or more Members that provide such Member(s) with additional and/or different rights (including, without limitation, access to information, minimum investment amounts, and other terms) than such Member(s) have pursuant to this Agreement and all materials provided.

Risk of Audit.

An audit of the tax returns of a Subscriber could result in the challenge to, and disallowance of, some of the deductions claimed in such returns. No assurance or warranty of any kind can be made with respect to the deductibility of any items in the event of either an audit or any litigation resulting from an audit. An audit could arise as a result of an examination by the IRS or any state or local taxing authority of tax returns filed by the Manager, or the Subscriber or any information returns filed by the Company.

Changes in Federal Income Tax Law.

The discussion of tax aspects contained in this Agreement and all materials provided is based on law presently in effect and certain proposed Treasury Regulations. Nonetheless, Subscribers should be aware that new administrative, legislative or judicial action could significantly change the tax aspects of an investment in the Investor Units. Any such change may or may not be retroactive with respect to transactions entered into or contemplated before the effective date of such change and could have a material adverse effect on an investment in an Investor Unit.

State and Local Taxes.

In addition to the federal income tax consequences, a prospective Subscriber should consider the state and local tax consequences of an investment in an Investor Unit. Such taxes may include, without limitation, income, franchise and excise taxes. Prospective Subscribers must consult with their own tax advisors concerning the applicability and impact of any state and local tax laws.

Information Provided by the Manager.

Information contained in this Agreement and all materials provided, including, without limitation, the investment strategy and policies, biographical and certain other information, has been furnished largely by

the Manager and its affiliates and in general has not been independently confirmed or verified. Therefore, potential Subscribers should seek to confirm such information, seek additional information or conduct further investigation as they deem appropriate in connection with a decision to invest in the Company.

Risk of Default or Bankruptcy of the Company.

Under certain conditions, the Company could suffer losses if it were to file for bankruptcy or be declared in default by certain other third parties, including banks with which the Company does business, or to which other financial instruments and/or other assets of the Company.

Risk Summary.

The foregoing list of risk factors does not purport to be a complete enumeration or explanation of the risks involved in an investment in the Company. Prospective investors should read the entire LLC Agreement and consult with their own advisors before deciding whether to invest in the Company. An investment in the Company involves a substantial degree of risk.

Dependency on Key Personnel

The Company will rely heavily on the expertise, experience, and continued services of key personnel. The loss of the services of any one of these individuals may adversely impact the Company's ability to meet its objectives. Even if the Company is able to replace any such person with another resource of comparable skill and experience, we believe the delay caused by finding such replacement may materially harm the Company's prospects.

Qualified Small Business Risk Factors

- The intent is that the operating entity that is the ultimate investment target of the Company, Kitchen Concepts Plus, LLC a Delaware limited liability company ("KCP"), will endeavor to qualify as a Qualified Small Business ("QSB"), and will use commercially reasonable efforts to conduct its operations so that it is treated as a QSB in accordance with the Code and the rules promulgated pursuant thereto (the "QSB Rules").

- However, no assurances can be provided that KCP will qualify as a QSB or that, even if it does qualify, any or all of the tax benefits described herein will be available to any particular member of the Company. Additionally, no assurances can be provided that states and localities will conform their tax law to provide parallel state and local benefits to those provided under the QSB Rules.

- Further, as a result of any additional legislation or administrative guidance, Atomus Equity Partners may change the structure, investment strategies and/or practices of KCP in order to permit PE to qualify as a QSB or for members to be able to receive certain of the anticipated tax benefits of investing in a QSB. Atomus Equity Partners may also determine, in its sole discretion and without the prior consent of the any investors, to change the structure, investment strategies and/or practices of the Company (including in a significant manner) in order to permit PE to qualify as a QSB or in order for certain investors to be able to receive certain of the anticipated tax benefits of investing in a QSB. Such changes may cause KCP to incur significant costs and/or avoid or execute on

transactions it otherwise would not have, which could have a material adverse effect on the performance of KCP or the Company. Further, additional legislation or administrative guidance may cause KCP to fail to qualify as a QSB or provide ultimate owners of KCP with the anticipated tax benefits in respect of QSBs provided under the current QSB Rules, and there may be no remedies that Atomus Equity Partners will be able to undertake in order to qualify KCP to receive such benefits. Notwithstanding the foregoing, if additional legislation or administrative guidance causes KCP to fail to qualify as a QSB or provide members of KCP with such anticipated tax benefits as a result of the current or anticipated structure, investment strategies and/or practices (or otherwise) of KCP, Atomus Equity Partners Capital will have no obligation to make changes to PE in order for KCP to qualify as a QSB.

- IN ADDITION, NOTWITHSTANDING ANYTHING IN THE MEMORANDUM TO THE CONTRARY, ATOMUS EQUITY PARTNERS MAY DETERMINE, AS A RESULT OF A CHANGE IN LAW OR INTERPRETATION THEREOF, AT ANY TIME, TO CEASE MANAGING PE IN A MANNER DESIGNED TO QUALIFY THE COMPANY AS A QSB AND/OR TO CEASE SEEKING TO PROVIDE CERTAIN OR ALL INVESTORS WITH THE TAX BENEFITS RELATING TO INVESTING IN QSBs.

- AS A RESULT OF THE FOREGOING, THERE CAN BE NO GUARANTEE THAT INVESTORS WILL BE ABLE TO OBTAIN ANY OF THE POTENTIAL TAX BENEFITS DESCRIBED HEREIN.

Confidential Information

Each investor will be required to agree to confidentiality and non-circumvention provisions intended to protect proprietary and other information relating to the Company and potential investments.

Legal Representation

Lippes Mathias LLP ("Counsel") may represent Atomus Equity Partners Capital and the Company and each of their respective affiliates from time to time in a variety of different matters. Counsel does not represent or owe any duty to any Purchaser or holder of Units in connection with the organization, fundraising and ongoing management of the Business or any of its investments. In connection with the organization or operation of the Business, separate counsel will not be engaged by Atomus Equity Partners Capital on behalf of the investors.

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THE FOREGOING RISKS DO NOT PURPORT TO BE A COMPLETE EXPLANATION OF ALL OF THE RISKS OF MAKING AN INVESTMENT IN THE COMPANY. PROSPECTIVE INVESTORS ARE URGED TO READ ALL OF THE OFFERING DOCUMENTS, MAKE INQUIRIES OF THE PRINCIPALS, AND CONSULT WITH THEIR ADVISORS BEFORE MAKING A DETERMINATION WHETHER TO INVEST IN THE COMPANY.

EXHIBIT D

Limited Liability Company Agreement

[Attached]

ATOMUS KCP INVESTMENTS HOLDINGS LLC

LIMITED LIABILITY COMPANY AGREEMENT

THE MEMBERSHIP INTERESTS REPRESENTED BY THIS LIMITED LIABILITY COMPANY AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED, OR UNDER ANY OTHER APPLICABLE SECURITIES LAWS. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, PLEDGED OR OTHERWISE DISPOSED OF AT ANY TIME WITHOUT EFFECTIVE REGISTRATION UNDER SUCH ACT AND LAWS OR EXEMPTION THEREFROM, AND COMPLIANCE WITH THE OTHER SUBSTANTIAL RESTRICTIONS ON TRANSFERABILITY SET FORTH HEREIN.

THE MEMBERSHIP INTERESTS REPRESENTED BY THIS LIMITED LIABILITY COMPANY AGREEMENT ARE SUBJECT, AMONG OTHER THINGS, TO CONDITIONS AND RESTRICTIONS ON TRANSFER SET FORTH HEREIN, AND THE COMPANY RESERVES THE RIGHT TO REFUSE THE TRANSFER OF SUCH INTERESTS UNLESS AND UNTIL ALL APPLICABLE CONDITIONS HAVE BEEN FULFILLED WITH RESPECT TO ANY REQUESTED TRANSFER.

LIMITED LIABILITY COMPANY AGREEMENT
OF
ATOMUS KCP INVESTMENTS HOLDINGS LLC

This Limited Liability Company Agreement (collectively, with all schedules and exhibits hereto, as amended from time to time, this "**Agreement**") of Atomus KCP Investments Holdings LLC, a Delaware limited liability company (the "**Company**"), is entered into as of [●], 2025 (the "**Effective Date**"), by and among the Company, the Manager (as defined herein), the undersigned initial Members of the Company, and each other Person who after the date hereof becomes a Member of the Company and becomes a party to this Agreement by executing a Joinder Agreement.

RECITALS

WHEREAS, the Company was formed under the laws of the State of Delaware by the filing of Certificate of Formation with the Secretary of State of the State of Delaware (the "**Secretary of State**") on [●], 2025 (the "**Certificate of Formation**");

WHEREAS, this Company has been formed for the purpose of making an investment in Kitchen Concepts Plus Holdings, LLC, a Delaware limited liability company ("**KCP Holdings**") which, pursuant to that that certain Asset Purchase and Contribution Agreement, dated as of [●], 2025, by and among Kitchen Concepts Plus, Inc. ("**KCP Inc.**") a Maryland corporation, as Seller, Michael Donohue, an individual residing in the State of Maryland, Amy Donohue, an individual residing in the State of Maryland, as Shareholders, and KCP Holdings LLC, as Buyer (the "**Purchase Agreement**"), purchased substantially all of the assets of, and assumed certain limited liabilities of, KCP Inc.;

WHEREAS, immediately following such purchase, sale, and contribution as contemplated by the Purchase Agreement, the Buyer contributed all of its assets and liabilities to a wholly-owned subsidiary of the Buyer, KCP Intermediate Holdings LLC, a Delaware limited liability taxed as a subchapter c-corporation ("**KCP Intermediate**") and KCP Intermediate subsequently contributed all such assets and liabilities to [Kitchen Concepts Plus, LLC, a Delaware limited liability company][3] ("**OpCo**");

WHEREAS, it is the intent of the Company and Buyer to continue to grow and develop the business of KCP Holdings, KCP Intermediate, and OpCo for investment purposes; and

WHEREAS, in connection with the foregoing, the Members, Manager, and the Company desire to enter into this Agreement to set forth the terms and conditions governing the operation and management of the Company.

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

3 NTD: Name and state of formation of entity to be finalized prior to closing of initial acquisition.

ARTICLE I
DEFINITIONS

Section 1.01 Definitions. Capitalized terms used herein and not otherwise defined shall have the meanings set forth in this Section 1.01:

"Act" means the Delaware Limited Liability Company Law.

"**Adjusted Capital Account Deficit**" means, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant Fiscal Year, after giving effect to the following adjustments:

(a) crediting to such Capital Account any amount which such Member is obligated to restore or is deemed to be obligated to restore pursuant to Treasury Regulations Sections 1.704-1(b)(2)(ii)(c), 1.704-2(g)(1), and 1.704-2(i); and

(b) debiting to such Capital Account the items described in Treasury Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5), and (6).

"**Adjusted Taxable Income**" of a Member for a Fiscal Year (or portion thereof) with respect to Units held by such Member means the federal taxable income allocated by the Company to the Member with respect to such Units (as adjusted by any final determination in connection with any tax audit or other proceeding) for such Fiscal Year (or portion thereof); *provided*, that such taxable income shall be computed (a) minus any excess taxable loss or excess taxable credits of the Company for any prior period allocable to such Member with respect to such Units that were not previously taken into account for purposes of determining such Member's Adjusted Taxable Income in a prior Fiscal Year to the extent such loss or credit would be available under the Code to offset income of the Member (or, as appropriate, the direct or indirect members of the Member) determined as if the income, loss, and credits from the Company were the only income, loss, and credits of the Member (or, as appropriate, the direct or indirect members of the Member) in such Fiscal Year and all prior Fiscal Years; and (b) taking into account any special basis adjustment with respect to such Member resulting from an election by the Company under Code Section 754.

"**Affiliate**" means, with respect to any Person, any other Person that, directly or indirectly (including through one or more intermediaries), (i) controls, is controlled by, or is under common control with, such Person, or (ii) is an officer, director, managing member, manager, general partner, or trustee of such Person or of which such Person is an officer, director, managing member, manager, general partner, or trustee; or (b) that is an individual, (i) any trust for the benefit of such individual, and (ii) any Person other than an individual that, directly or indirectly (including through one or more intermediaries), controls, is controlled by, or is under common control with, any of the foregoing individuals or trusts referenced in this clause (b). For purposes of this definition, "**control**," when used with respect to any specified Person, shall mean the power, direct or indirect, to direct or cause the direction of the management and policies of such Person, whether

through ownership of voting securities or partnership or other ownership interests, by contract, or otherwise; *provided, however,* that a Person that, directly or indirectly, owns or controls thirty percent (30%) or more of any voting securities, partnership, or other interests that provide the ability to cause the direction of the management and policies of a Person shall be deemed to control such Person; and the terms "**controlling**" and "**controlled**" shall have correlative meanings. Notwithstanding the foregoing, the term "Affiliate," when used with respect to a Member, shall not include the Company.

"**Agreement**" means this Limited Liability Company Agreement, as executed and as it may be amended, modified, supplemented, or restated from time to time, as provided herein.

"**Applicable Law**" means all applicable provisions of (a) constitutions, treaties, statutes, laws (including the common law), rules, regulations, decrees, ordinances, codes, proclamations, declarations, or orders of any Governmental Authority; (b) any consents or approvals of any Governmental Authority; and (c) any orders, decisions, advisory, or interpretative opinions, injunctions, judgments, awards, decrees of, or agreements with, any Governmental Authority.

"**Certificate of Formation**" has the meaning set forth in the Recitals.

"**Bankruptcy**" means, with respect to a Member, the occurrence of any of the following: (a) the filing of an application by such Member for, or a consent to, the appointment of a trustee of such Member's assets; (b) the filing by such Member of a voluntary petition in bankruptcy or the filing of a pleading in any court of record admitting in writing such Member's inability to pay their debts as they come due; (c) the making by such Member of a general assignment for the benefit of such Member's creditors; (d) the filing by such Member of an answer admitting the material allegations of, or such Member's consenting to, or defaulting in answering a bankruptcy petition filed against such Member in any bankruptcy proceeding; or (e) the expiration of sixty (60) days following the entry of an order, judgment, or decree by any court of competent jurisdiction adjudicating such Member a bankrupt or appointing a trustee of such Member's assets.

"**Book Depreciation**" means, with respect to any Company asset for each Fiscal Year, the Company's depreciation, amortization, or other cost recovery deductions determined for federal income tax purposes, except that if the Book Value of an asset differs from its adjusted tax basis at the beginning of such Fiscal Year, Book Depreciation shall be an amount which bears the same ratio to such beginning Book Value as the federal income tax depreciation, amortization, or other cost recovery deduction for such Fiscal Year bears to such beginning adjusted tax basis; *provided*, that if the adjusted basis for federal income tax purposes of an asset at the beginning of such Fiscal Year is zero and the Book Value of the asset is positive, Book Depreciation shall be determined with reference to such beginning Book Value using any permitted method selected by the Manager in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(g)(3).

"**Book Value**" means, with respect to any Company asset, the adjusted basis of such asset for federal income tax purposes, except as follows:

(a) the initial Book Value of any Company asset contributed by a Member to the Company shall be the gross Fair Market Value of such Company asset as of the date of such contribution;

(b) immediately prior to the Distribution by the Company of any Company asset to a Member, the Book Value of such asset shall be adjusted to its gross Fair Market Value as of the date of such Distribution;

(c) the Book Value of all Company assets shall be adjusted to equal their respective gross Fair Market Values, as determined by the Manager, as of the following times:

(i) the acquisition of an additional Membership Interest in the Company by a new or existing Member in consideration of a Capital Contribution of more than a *de minimis* amount;

(ii) the Distribution by the Company to a Member of more than a *de minimis* amount of property (other than cash) as consideration for all or a part of such Member's Membership Interest in the Company; and

(iii) the liquidation of the Company within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(g);

(d) the Book Value of each Company asset shall be increased or decreased, as the case may be, to reflect any adjustments to the adjusted tax basis of such Company asset pursuant to Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Account balances pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m); *provided*, that Book Values shall not be adjusted pursuant to this paragraph (d) to the extent that an adjustment pursuant to paragraph (c) above is made in conjunction with a transaction that would otherwise result in an adjustment pursuant to this paragraph (d); and

(e) if the Book Value of a Company asset has been determined pursuant to paragraph (a) or adjusted pursuant to paragraphs (c) or (d) above, such Book Value shall thereafter be adjusted to reflect the Book Depreciation taken into account with respect to such Company asset for purposes of computing Net Income and Net Losses.

"**Business**" has the meaning set forth in Section 2.05.

"**Business Day**" means a day other than a Saturday, Sunday, or other day on which commercial banks in the City of New York are authorized or required to close.

"**Capital Account**" has the meaning set forth in Section 5.03.

"**Capital Contribution**" means, for any Member, the total amount of cash and cash equivalents and the Book Value of any property contributed to the Company by such Member.

"**Code**" means the Internal Revenue Code of 1986.

"**Company**" has the meaning set forth in the Preamble.

"**Company Minimum Gain**" means "partnership minimum gain" as defined in Treasury Regulations Section 1.704-2(b)(2), substituting the term "Company" for the term "partnership" as the context requires.

"**Confidential Information**" has the meaning set forth in Section 14.01.

"**Counsel**" has the meaning set forth in Section 14.20.

"**Covered Person**" has the meaning set forth in Section 13.01(a).

"**Distribution**" means a distribution made by the Company to a Member, whether in cash, property, or securities of the Company and whether by liquidating distribution or otherwise; *provided*, that none of the following shall be a Distribution: (a) any redemption or repurchase by the Company or any Member of any Units; (b) any recapitalization or exchange of securities of the Company; (c) any subdivision (by a split of Units or otherwise) or any combination (by a reverse split of Units or otherwise) of any outstanding Units; or (d) any fees or remuneration paid to any Member in such Member's capacity as a service provider for the Company. "**Distribute**" when used as a verb shall have a correlative meaning.

"**Electronic Transmission**" means any form of communication not directly involving the physical transmission of paper, including the use of, or participation in, one or more electronic networks or databases (including one or more distributed electronic networks or databases), that creates a record that may be retained, retrieved, and reviewed by a recipient thereof and that may be directly reproduced in paper form by such a recipient through an automated process.

"**Estimated Tax Amount**" of a Member for a Fiscal Year means the Member's Tax Amount for such Fiscal Year as estimated in good faith from time to time by the Manager. In making such estimate, the Manager shall take into account amounts shown on Internal Revenue Service Form 1065 filed by the Company and similar state or local forms filed by the Company for the preceding taxable year and such other adjustments as in the reasonable business judgment of the Manager are necessary or appropriate to reflect the estimated operations of the Company for the Fiscal Year.

"**Fair Market Value**" shall mean the value of an asset at the time of sale, as determined jointly by the Manager in its reasonable discretion.

"**Fiscal Year**" means the calendar year, unless the Company is required to have a taxable year other than the calendar year, in which case Fiscal Year shall be the period that conforms to its taxable year.

"**GAAP**" means United States generally accepted accounting principles in effect from time to time.

"**Governmental Authority**" means any federal, state, local, or foreign government or political subdivision thereof, or any agency or instrumentality of such government or political subdivision, or any self-regulated organization or other non-governmental regulatory authority or quasi-governmental authority (to the extent that the rules, regulations, or orders of such

organization or authority have the force of law), or any arbitrator, court, or tribunal of competent jurisdiction.

"**Investor Capital Amount**" means, with respect to each Investor Member, the total cash Capital Contributions of such Investor Member to the Company.

"**Investor Member**" means a Member that holds Investor Units.

"**Investor Percentage Interest**" means, with respect to each Investor Member, the percentage determined from time to time by dividing (a) the number of Investor Units held by such Investor Member by (b) the aggregate number of Investor Units held by all of the Investor Members.

"**Investor Units**" means the Units having any privileges, preference, duties, liabilities, obligations, and rights that are specified with respect to "Investor Units" in this Agreement.

"**Issued Price**" has the meaning set forth in Section 9.01(b).

"**Issued Securities**" has the meaning set forth in Section 9.01(b).

"**Issued Terms**" has the meaning set forth in Section 9.01(b).

"**Joinder Agreement**" means the joinder agreement in form and substance reasonably acceptable to the Company.

"**Liquidator**" has the meaning set forth in Section 12.03(a).

"**Losses**" has the meaning set forth in Section 13.03(a).

"**Manager**" means, initially, Atomus Equity Partners LLC, or such other Person as may become the Manager pursuant to the terms of this Agreement. The Manager shall constitute a "manager" (as that term is defined in the Act) of the Company.

"**Member**" means the persons signing this Agreement as a Member each Person who is hereafter admitted as a Member in accordance with the terms of this Agreement and the Act, in each case so long as such Person is shown on the Company's books and records as the owner of one or more Units. The Members shall constitute the "members" (as that term is defined in the Act) of the Company.

"**Member Nonrecourse Debt**" means "partner nonrecourse debt" as defined in Treasury Regulations Section 1.704-2(b)(4), substituting the term "Company" for the term "partnership" and the term "Member" for the term "partner" as the context requires.

"**Member Nonrecourse Debt Minimum Gain**" means an amount, with respect to each Member Nonrecourse Debt, equal to the Company Minimum Gain that would result if the Member Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance with Treasury Regulations Section 1.704-2(i)(3).

"**Member Nonrecourse Deduction**" means "partner nonrecourse deduction" as defined in Treasury Regulations Section 1.704-2(i), substituting the term "Member" for the term "partner" as the context requires.

"**Members Schedule**" has the meaning set forth in Section 4.01(a).

"**Membership Interest**" means an interest in the Company owned by a Member, including such Member's right (based on the type, class, or series of Unit or Units held by such Member), as applicable, to (a) such Member's Distributive share of Net Income, Net Losses, and other items of income, gain, loss, and deduction of the Company; (b) such Member's Distributive share of the assets of the Company; (c) vote on, consent to, or otherwise participate in any decision of the Members as provided in this Agreement; and (d) any and all other benefits to which such Member may be entitled as provided in this Agreement or the Act.

"**Member Purchase Right Notice**" has the meaning set forth in Section 9.01(b).

"**Misallocated Item**" has the meaning set forth in Section 6.05.

"**Net Income**" and "**Net Loss**" mean, for each Fiscal Year or other period specified in this Agreement, an amount equal to the Company's taxable income or taxable loss, or particular items thereof, determined in accordance with Code Section 703(a) (where, for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or taxable loss), but with the following adjustments:

(a) any income realized by the Company that is exempt from federal income taxation, as described in Code Section 705(a)(1)(B), shall be added to such taxable income or taxable loss, notwithstanding that such income is not includable in gross income;

(b) any expenditures of the Company described in Code Section 705(a)(2)(B), including any items treated under Treasury Regulations Section 1.704-1(b)(2)(iv)(i) as items described in Code Section 705(a)(2)(B), shall be subtracted from such taxable income or taxable loss, notwithstanding that such expenditures are not deductible for federal income tax purposes;

(c) any gain or loss resulting from any disposition of Company property with respect to which gain or loss is recognized for federal income tax purposes shall be computed by reference to the Book Value of the property so disposed, notwithstanding that the adjusted tax basis of such property differs from its Book Value;

(d) any items of depreciation, amortization, and other cost recovery deductions with respect to Company property having a Book Value that differs from its adjusted tax basis shall be computed by reference to the property's Book Value (as adjusted for Book Depreciation) in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(g);

(e) if the Book Value of any Company property is adjusted as provided in the definition of Book Value, then the amount of such adjustment shall be treated as an item of gain or loss and included in the computation of such taxable income or taxable loss; and

(f) to the extent an adjustment to the adjusted tax basis of any Company property pursuant to Code Sections 732(d), 734(b) or 743(b) is required, pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m), to be taken into account in determining Capital Accounts, the amount of such adjustment to the Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis).

"**New Securities**" has the meaning set forth in Section 9.01(a).

"**New Units**" has the meaning set forth in Section 3.03.

"**Nonrecourse Liability**" has the meaning set forth in Treasury Regulations Section 1.704-2(b)(3).

"**Officers**" has the meaning set forth in Section 8.03.

"**Partnership Tax Audit Rules**" mean Code Sections 6221 through 6241, together with any regulatory or other administrative guidance promulgated thereunder, and any successor provisions.

"**Person**" means an individual, corporation, partnership, joint venture, limited liability company, Governmental Authority, unincorporated organization, trust, association, or other entity.

"**Preferred Return**" means an amount equal to such Investor Member's Unreturned Capital Contributions (computed as a weighted daily average during the period for which the Preferred Return is being determined) multiplied by eight percent (8%) per annum, which to the extent not paid shall accrue daily and compound annually, and if compounded, such amount shall be deemed to be added to an Investor Member's Unreturned Capital Contributions for purposes of calculating the Preferred Return thereafter.

"**Public Offering**" means any underwritten public offering pursuant to a registration statement filed in accordance with the Securities Act.

"**Purchase Period**" has the meaning set forth in Section 9.01(b).

"**Purchase Right**" has the meaning set forth in Section 9.01(b).

"**Regulatory Allocations**" has the meaning set forth in Section 6.02(d).

"**Representative**" means, with respect to any Person, any and all directors, managers, officers, employees, consultants, financial advisors, counsel, accountants, and other agents of such Person.

"**Secretary of State**" has the meaning set forth in the Recitals.

"**Securities Act**" means the Securities Act of 1933.

"**Sponsor Member**" means a Member that holds Sponsor Units. As of the date hereof, the sole Sponsor Member shall be Atomus Equity Partners LLC.

"**Sponsor Percentage Interest**" means, for any Sponsor Member, the number of Sponsor Units held by such Sponsor Member divided by the total number of outstanding Sponsor Units, expressed as a percentage.

"**Sponsor Requisite Members**" means the holders of a majority of the Sponsor Units.

"**Sponsor Units**" means the Units having any privileges, preference, duties, liabilities, obligations, and rights that are specified with respect to "Sponsor Units" in this Agreement.

"**Tax Amount**" of a Member for a Fiscal Year means the product of (a) the Tax Rate for such Fiscal Year and (b) the Adjusted Taxable Income of the Member for such Fiscal Year with respect to such Member's Units.

"**Tax Matters Representative**" has the meaning set forth in Section 11.05(a).

"**Tax Rate**" of a Member, for any period, means the highest marginal blended federal, state, and local tax rate applicable to ordinary income, qualified dividend income, or capital gains, as appropriate, for such period for an individual residing in New York, New York.

"**Taxing Authority**" has the meaning set forth in Section 7.03(b).

"**Third Party Purchaser**" means any Person who, immediately prior to the contemplated transaction, (a) does not directly or indirectly own or have the right to acquire any outstanding Units or (b) is not an Affiliate of any Person who directly or indirectly owns or has the right to acquire any Units.

"**Transfer**" means to, directly or indirectly, sell, transfer, assign, pledge, encumber, hypothecate, or similarly dispose of, either voluntarily or involuntarily, by operation of law or otherwise, or to enter into any contract, option, or other arrangement or understanding with respect to the sale, transfer, assignment, pledge, encumbrance, hypothecation, or similar disposition of, any Units owned by a Person or any interest (including a beneficial interest) in any Units owned by a Person. "**Transfer**" when used as a noun shall have a correlative meaning. "**Transferor**" and "**Transferee**" mean a Person who makes or receives a Transfer, respectively.

"**Treasury Regulations**" means the final or temporary regulations issued by the United States Department of Treasury pursuant to its authority under the Code, and any successor regulations.

"**Unallocated Item**" has the meaning set forth in Section 6.05.

"**Unit**" means a unit representing a fractional part of the Membership Interests of the Members and shall include all types, classes, and series of Units issued hereunder, including the Sponsor Units and the Investor Units; *provided*, that any type, class, or series of Unit shall have the privileges, preference, duties, liabilities, obligations, and rights set forth in this Agreement with respect to such type, class, or series of Unit and the Membership Interests represented by such type,

class, or series of Unit shall be determined in accordance with such privileges, preference, duties, liabilities, obligations, and rights.

"**Unpaid Preferred Return**" means an Investor Member's Preferred Return reduced (but not below zero) by all Distributions to such Investor Member pursuant to Section 7.01(a)(i). In the event that an Investor Member Transfers all or a portion of their Investor Units in accordance with the terms of this Agreement, such Investor Member's Transferee shall succeed to such Investor Member's Unpaid Preferred Return to the extent that it relates to such Transferred Investor Units.

"**Unreturned Capital Contributions**" means each Investor Member's Capital Contributions reduced (but not below zero) by all Distributions to such Investor Member pursuant to Section 7.01(b). In the event that any Member Transfers all or a portion of their Investor Units in accordance with the terms of this Agreement such Member's Transferee shall succeed to such Member's Unreturned Capital Contributions to the extent that it relates to such Transferred Units. In the event that a Member's Investor Units are purchased by the Company, the Unreturned Capital Contributions of the Member shall be reduced to the extent it relates to such purchased Units, and no Transferee will succeed to the Unreturned Capital Contribution amount.

"**Withholding Advances**" has the meaning set forth in Section 7.03(b).

Section 1.02 Interpretation. For purposes of this Agreement, (a) the words "include," "includes," and "including" shall be deemed to be followed by the words "without limitation"; (b) the word "or" is not exclusive; and (c) the words "herein," "hereof," "hereby," "hereto," and "hereunder" refer to this Agreement as a whole. The definitions given for any defined terms in this Agreement shall apply equally to both the singular and plural forms of the terms defined. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine, and gender-neutral forms. Unless the context otherwise requires, references herein: (i) to Articles, Sections, and Exhibits mean the Articles and Sections of, and Exhibits attached to, this Agreement; (ii) to an agreement, instrument, or other document means such agreement, instrument, or other document as amended, supplemented, and modified from time to time to the extent permitted by the provisions thereof; and (iii) to a statute means such statute as amended from time to time and includes any successor legislation thereto and any regulations promulgated thereunder. This Agreement shall be construed without regard to any presumption or rule requiring construction or interpretation against the party drafting an instrument or causing any instrument to be drafted. The Exhibits referred to herein shall be construed with, and as an integral part of, this Agreement to the same extent as if they were set forth verbatim herein.

ARTICLE II
ORGANIZATION

Section 2.01 Formation.

(a) The Company was formed on [●], 2025, pursuant to the provisions of the Delaware Limited Liability Company Act (the "**Act**"), upon the filing of the Certificate of Formation with the Secretary of State.

(b) This Agreement shall constitute the "Limited Liability Company Agreement" (as that term is used in the Act) of the Company. The rights, powers, duties, obligations, and liabilities of the Members shall be determined pursuant to the Act and this Agreement. To the extent that the rights, powers, duties, obligations, and liabilities of any Member are different by reason of any provision of this Agreement than they would be under the Act in the absence of such provision, this Agreement shall, to the extent permitted by the Act, control.

Section 2.02 Name. The name of the Company is "Atomus KCP Investments Holdings LLC" or such other name or names as the Manager may from time to time designate and file with the Secretary of State in accordance with the Act; *provided*, that the name shall always contain the words "Limited Liability Company" or the abbreviation "L.L.C." or the designation "LLC."

Section 2.03 Principal Office. The principal office of the Company is located at 161 High Road, Newbury MA 01951, or such other place as may from time to time be determined by the Manager. The Manager shall give prompt notice of any such change to each of the Members.

Section 2.04 Registered Office; Registered Agent.

(a) The registered office of the Company shall be the office of the initial registered agent named in the Certificate of Formation or such other office (which need not be a place of business of the Company) as the Manager may designate from time to time in the manner provided by the Act and Applicable Law.

(b) The registered agent for service of process on the Company in the State of Delaware shall be the initial registered agent named in the Certificate of Formation or such other Person or Persons as the Manager may designate from time to time in the manner provided by the Act and Applicable Law.

Section 2.05 Purpose; Powers. The purpose of the Company is to engage in (i) the acquisition, growth, development, operation, and eventual sale of businesses in the home remodeling and in the construction industry (the "**Business**") and (ii) any and all lawful activities necessary or incidental thereto. The Company shall have all the powers necessary or convenient to carry out the purposes for which it is formed, including the powers granted by the Act.

Section 2.06 Term. The term of the Company commenced on the date the Certificate of Formation was filed with the Secretary of State and shall continue in existence perpetually until the Company is dissolved in accordance with the provisions of this Agreement (the "**Term**").

Section 2.07 No State-Law Partnership. The Members intend that the Company shall be treated as a partnership for federal and, if applicable, state and local income tax purposes, and, to the extent permissible, the Company shall elect to be treated as a partnership for such purposes. The Company and each Member shall file all tax returns and otherwise take all tax and financial reporting positions in a manner consistent with such treatment and no Member shall take any action inconsistent with such treatment. The Members intend that the Company shall not be a partnership (including a limited partnership) or joint venture, and that no Member, Manager, or Officer of the Company shall be a partner or joint venturer of any other Member, Manager, or Officer of the Company, for any purposes other than as set forth in the first sentence of this Section 2.07.

ARTICLE III
UNITS

Section 3.01 Units Generally. The Membership Interests of the Members shall be represented by issued and outstanding Units, which may be divided into one or more types, classes, or series. The Company is initially authorized to issue the Units authorized under Section 3.02 and Section 3.03. on the date hereof. Each type, class, or series of Units shall have the privileges, preference, duties, liabilities, obligations, and rights, including voting rights, if any, set forth in this Agreement with respect to such type, class, or series.

Section 3.02 Authorization and Issuance of Sponsor Units. Subject to Section 3.03 below, the Company is hereby authorized to issue two classes of Units of membership interest in the Company, each of which shall be afforded the rights and privileges as is set forth in this Agreement. Those two classes of Units, as of the date hereof, shall be Investor Units and Sponsor Units.

Section 3.03 New Units. In addition to the Sponsor Units and Investor Units authorized on the date hereof pursuant to Section 3.02 and Section 3.03, the Company is hereby authorized, subject to compliance with the applicable provisions of Section 9.01, and Section 10.01(b), to authorize and issue or sell to any Person, for consideration and on other terms and conditions determined by the Manager, any Units (including any new type, class, or series of Sponsor Units or Investor Units) that are not authorized on the date hereof, including Units with different rights, privileges, or preferences (collectively, "**New Units**") (each, an "**Issuance**"); *provided, however*, that, subject to the superior voting and other rights of the Sponsor Units relative to the Investor Units hereunder on the date hereof, including under Section 9.01, any Issuance shall not be disproportionately adverse to the Investor Members relative to the Sponsor Members, including with respect to their right to receive Distributions. The Manager is hereby authorized to amend this Agreement to reflect any such Issuance and to fix the relative privileges, preferences, duties, liabilities, obligations, and rights of any such New Units, including the number of such New Units to be issued, any preference (with respect to Distributions, in liquidation, or otherwise) over any other Units, and any contributions required in connection therewith.

ARTICLE IV
MEMBERS

Section 4.01 Members; Percentage Interests.

(a) The names and addresses of the Members and number and class of Units held by each Member as of the date hereof are set forth on Schedule A to this Agreement (the "**Members Schedule**").

(b) Upon any Issuance or Transfer of Units (in either case in accordance with the provisions of this Agreement), the Manager shall, without the requirement to obtain the consent of any other Member, amend the Members Schedule to reflect such Issuance or Transfer, and if applicable, admission of a new Member.

Section 4.02 Admission of New Members.

(a) New Members may be admitted from time to time in connection with (i) an Issuance by the Company in accordance with the provisions of this Agreement, subject to compliance with the provisions of Section 3.03, Section 9.01, and Section 10.01(b), as applicable, and (ii) a Transfer of Units, subject to compliance with the provisions of 27ARTICLE X, and in either case, following compliance with the provisions of Section 4.02(b).

(b) In order for any Person not already a Member of the Company to be admitted as a Member, whether pursuant to an Issuance or a Transfer (including a Permitted Transfer), such Person shall have executed and delivered to the Company a written undertaking substantially in the form of the Joinder Agreement. Upon the amendment of the Members Schedule by the Manager in accordance with the provisions of this Agreement and the satisfaction of any other applicable conditions as may reasonably be deemed necessary or appropriate by the Manager, including, if applicable, the receipt by the Company of payment for the Issuance of the applicable Units and/or the delivery of any certificate representing the Transferred Units, duly endorsed to the Transferee to which the Transferred Units are to be Transferred, such Person shall be admitted as a Member and deemed listed as such on the books and records of the Company and thereupon shall be issued their Units. The Manager shall also adjust the Capital Accounts of the Members as necessary in accordance with Section 5.03 or Section 5.04.

Section 4.03 Representations and Warranties of Members. By execution and delivery of this Agreement or a Joinder Agreement, as applicable, each of the Members, whether admitted as of the date hereof or pursuant to Section 4.02, represents and warrants to the Company and acknowledges that:

(a) The Units have not been registered under the Securities Act or the securities laws of any other jurisdiction, are issued in reliance upon federal and state exemptions for transactions not involving a public offering, and cannot be disposed of unless (i) they are subsequently registered or exempted from registration under the Securities Act and (ii) the provisions of this Agreement have been complied with;

(b) Such Member (i) is an "accredited investor" within the meaning of Rule 501 promulgated under the Securities Act and (ii) agrees to furnish any additional information requested by the Manager or the Company to assure compliance with applicable U.S. federal and state securities laws in connection with the purchase and sale of the Units;

(c) Such Member's Units are being acquired for such Member's own account solely for investment and not with a view to resale or distribution thereof;

(d) Such Member has been advised to obtain independent counsel to advise them individually in connection with the drafting, preparation, negotiation, and/or review of this Agreement and, if applicable, the Joinder Agreement. Such Member has conducted their own independent review and analysis of the business, operations, assets, liabilities, results of operations, financial condition, and prospects of the Company and such Member

acknowledges having been provided adequate access to the personnel, properties, premises, and records of the Company for such purpose;

(e) The determination of such Member to acquire Units has been made by such Member independent of any other Member and independent of any statements or opinions as to the advisability of such purchase or as to the business, operations, assets, liabilities, results of operations, financial condition, and prospects of the Company that may have been made or given by any other Member or the Company or by any of their Affiliates or Representatives;

(f) Such Member has such knowledge and experience in financial and business matters and is capable of evaluating the merits and risks of an investment in the Company and making an informed decision with respect thereto;

(g) Such Member is able to bear the economic and financial risk of an investment in the Company for an indefinite period of time;

(h) The execution, delivery, and performance of this Agreement or the Joinder Agreement by such Member (i) if it is an entity, have been duly authorized by all requisite entity action on the part of such Member and do not require such Member to obtain any consent or approval that has not been duly obtained; and (ii) do not contravene in any material respect or result in a default under (A) any provision of any law or regulation applicable to such Member; (B) if such Member is an entity, its governing documents; or (C) any agreement or instrument to which such Member is a party or by which such Member is bound; and

(i) This Agreement is valid, binding, and enforceable against such Member in accordance with its terms, except as may be limited by bankruptcy, insolvency, reorganization, moratorium, and other similar laws of general applicability relating to or affecting creditors' rights or general equity principles (regardless of whether considered at law or in equity).

None of the foregoing shall replace, diminish, or otherwise adversely affect any Member's representations and warranties made by such Member in any subscription agreement or unit purchase agreement executed by such Member.

Section 4.04 No Personal Liability. Except as otherwise provided in the Act, by Applicable Law, or expressly in this Agreement, no Member will be obligated personally for any debt, obligation, or liability of the Company or another Member, whether arising in contract, tort, or otherwise, solely by reason of being a Member.

Section 4.05 No Withdrawal. So long as a Member continues to hold any Units, such Member shall not have the ability to withdraw or resign as a Member prior to the dissolution and winding up of the Company and any such withdrawal or resignation or attempted withdrawal or resignation by a Member prior to the dissolution or winding up of the Company shall be null and void. As soon as any Person who is a Member ceases to hold any Units, such Person shall no longer be a Member. A Member shall cease to be a Member as a result of the Bankruptcy of such Member or any other event specified in the Act.

Section 4.06 Death. The death of any Member shall not cause the dissolution of the Company. In such event the Company and its Business shall be continued by the remaining Member or Members and the Units owned by the deceased Member shall automatically be Transferred to such Member's executors, administrators, testamentary trustees, legatees, distributees, or beneficiaries; *provided, however,* that such recipient of Units shall be deemed an "assignee" of such Units, as defined in the Act, and shall not be admitted as a Member (and shall have no rights hereunder other than to receive the economic benefit of such Units) unless and until: (i) the Manager consents to the admission of such party as a Member of the Company; and (ii) such party executed a Joinder in the form attached hereto as Exhibit A, agreeing to be bound by the terms of this Agreement.

Section 4.07 Voting. Except as otherwise expressly provided by this Agreement or as otherwise required by the Act or Applicable Law:

(a) Each Sponsor Member shall be entitled to one vote per Sponsor Unit on all matters upon which the Members have the right to vote under this Agreement; and

(b) The Investor Units shall not entitle the holders thereof to vote on any matters required or permitted to be voted on by the Members.

Section 4.08 Meetings.

(a) Unless otherwise provided herein, there shall be no requirement for the Company to hold annual or other regularly scheduled Meetings of the Members.

(b) Meetings of the Members may be called by (i) the Manager or (ii) any Sponsor Member; *provided, however*, that the Manager shall call a meeting of the Members prior to authorizing or taking (or permitting the Company to take) any major action.

(c) Written notice stating the place, date, and time of the meeting and describing the purpose(s) for which the meeting is called, shall be delivered not fewer than ten (10) days and not more than thirty (30) days before the date of the meeting to each Member, by or at the direction of the Manager or the Member(s) calling the meeting, as the case may be. The Members may hold meetings at the Company's principal office or at such other place as the Manager or the Member(s) calling the meeting may designate in the notice for such meeting.

(d) Any Member may participate in a meeting of the Members by means of conference telephone or other communications equipment by means of which all Persons participating in the meeting can hear each other, and participation in a meeting by such means shall constitute presence in person at such meeting.

(e) On any matter that is to be voted on by the Members, a Member may vote in person or by proxy, and such proxy may be granted in writing, by means of Electronic Transmission, or as otherwise permitted by Applicable Law. Every proxy shall be revocable in the discretion of the Member executing it unless otherwise provided in such proxy; *provided*, that such right to revocation shall not invalidate or otherwise affect

actions taken under such proxy prior to such revocation. No proxy shall be valid for longer than twelve (12) months from the date of its issuance.

(f) The business to be conducted at such meeting need not be limited to the purpose described in the notice; *provided*, that the Members with a right to vote on any matter subject to a vote at the meeting shall have been notified of the meeting in accordance with Section 4.08(c); and *provided, further*, that, notwithstanding anything herein to the contrary, any Sponsor Member shall have the right to require removal from the meeting of any Investor Member holding only Investor Units prior to any discussion of business at the meeting for which such Investor Units do not have a vote pursuant to the provisions of this Agreement. Attendance of a Member at any meeting shall constitute a waiver of notice of such meeting, except where a Member attends a meeting for the express purpose of objecting to the transaction of any business on the ground that the meeting is not lawfully called or convened.

Section 4.09 Quorum; Required Vote. A quorum of any meeting of the Members shall require the presence in person or by proxy of the Sponsor Requisite Members. Subject to Section 4.10, no action at any meeting may be taken by the Members unless the applicable quorum is present. Subject to Section 4.10, no action may be taken by the Members at any meeting at which a quorum is present without the affirmative vote of the Sponsor Requisite Members; *provided* that, if a different percentage of Units is required under this Agreement or by Applicable Law to take such action, then the affirmative vote of Members holding such different percentage of Units shall be required.

Section 4.10 Action Without Meeting. Notwithstanding the provisions of Section 4.08 and Section 4.09, any matter that is to be voted on, consented to, or approved by Members may be taken without a meeting, without prior notice, and without a vote, if (a) authorized by the Manager and (b) consented to, in writing or by Electronic Transmission, by a Member or Members holding not less than the minimum number of Units that would be necessary to authorize or take such action at a meeting at which each Member entitled to vote on the action were present and voted. A record shall be maintained by the Manager of each such action taken by written consent of a Member or Members.

Section 4.11 Power of Members. The Members shall have the power to exercise any and all rights or powers granted to Members pursuant to the express terms of this Agreement and the Act. Except as otherwise specifically provided in Section 8.01 or otherwise in this Agreement or required by the Act, no Member, in their capacity as a Member, shall have the power to act for or on behalf of, or to bind, the Company.

Section 4.12 No Interest in Company Property. No real or personal property of the Company shall be deemed to be owned by the Manager or any other Member individually, but shall be owned by, and title shall be vested solely in, the Company. Without limiting the foregoing, each Member hereby irrevocably waives during the term of the Company any right that such Member may have to maintain any action for partition with respect to the property of the Company.

ARTICLE V
CAPITAL CONTRIBUTIONS; CAPITAL ACCOUNTS

Section 5.01 Initial Capital Contributions. Concurrently with the execution of this Agreement, each Member (a) has made the Capital Contribution giving rise to such Member's initial Capital Account and is hereby admitted to the Company as a member; and (b) is deemed to own the number and class of Units, in each case in the amounts set forth opposite such Member's name, on the Members Schedule as in effect on the date hereof.

Section 5.02 Additional Capital Contributions.

(a) No Member shall be required to make any additional Capital Contributions to the Company. Any future Capital Contributions made by any Member shall only be made with the approval of the Manager, and in connection with an Issuance made in compliance with Section 9.01 and the other provisions of this Agreement.

(b) No Member shall be required to lend any funds to the Company and no Member shall have any personal liability for the payment or repayment of any Capital Contribution by or to any other Member.

Section 5.03 Maintenance of Capital Accounts. The Company shall establish and maintain for each Member a separate capital account (a "**Capital Account**") on its books and records in accordance with this Section 5.03. Each Capital Account shall be established and maintained in accordance with the following provisions:

(a) Each Member's Capital Account shall be increased by the amount of:

(i) such Member's Capital Contributions, including such Member's initial Capital Contribution;

(ii) any Net Income or other item of income or gain allocated to such Member pursuant to 18ARTICLE VI; and

(iii) any liabilities of the Company that are assumed by such Member or secured by any property Distributed to such Member.

(b) Each Member's Capital Account shall be decreased by:

(i) the cash amount or Book Value of any property Distributed to such Member pursuant to 21ARTICLE VII and Section 12.03(c);

(ii) the amount of any Net Loss or other item of loss or deduction allocated to such Member pursuant to 18ARTICLE VI; and

(iii) the amount of any liabilities of such Member assumed by the Company or which are secured by any property contributed by such Member to the Company.

Section 5.04 Succession Upon Transfer. In the event that any Units are Transferred in accordance with the terms of this Agreement, the Transferee shall succeed to the Capital Account of the Transferor to the extent it relates to the Transferred Units as of the date of such transfer and, subject to Section 6.04, shall receive allocations and Distributions pursuant to 18ARTICLE VI, 21ARTICLE VII, and 30ARTICLE XII in respect of such Units. Any reference in this Agreement to a Distribution to a Person shall include any Distributions made to a former or Transferor Member on account of Units Transferred to such Person.

Section 5.05 Negative Capital Accounts. In the event that any Member shall have a deficit balance in such Member's Capital Account, such Member shall have no obligation, during the Term of the Company or upon dissolution or liquidation thereof, to restore such negative balance or make any Capital Contributions to the Company by reason thereof, except as may be required by Applicable Law or in respect of any negative balance resulting from a withdrawal of capital or dissolution in contravention of this Agreement.

Section 5.06 No Withdrawal. No Member shall be entitled to withdraw any part of such Member's Capital Account or to receive any Distribution from the Company, except as provided in this Agreement. No Member shall receive any interest, salary, or drawing with respect to such Member's Capital Contributions or Capital Account, except as otherwise provided in this Agreement. The Capital Accounts are maintained for the sole purpose of allocating items of income, gain, loss, and deduction among the Members and shall have no effect on the amount of any Distributions to any Members, in liquidation or otherwise.

Section 5.07 Treatment of Loans from Members. Loans by any Member to the Company shall not be considered Capital Contributions and shall not affect the maintenance of such Member's Capital Account, other than to the extent provided in Section 5.03(a)(iii), if applicable.

Section 5.08 Modifications. The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Treasury Regulations Section 1.704-1(b) and shall be interpreted and applied in a manner consistent with such Treasury Regulations. If the Manager determines that it is prudent to modify the manner in which the Capital Accounts, or any increases or decreases to the Capital Accounts, are computed in order to comply with such Treasury Regulations, the Manager may authorize such modifications.

ARTICLE VI
ALLOCATIONS

Section 6.01 Allocation of Net Income and Net Loss. For each Fiscal Year (or portion thereof), except as otherwise provided in this Agreement, Net Income and Net Loss (and, to the extent necessary, individual items of income, gain, loss, or deduction) of the Company shall be allocated among the Members in a manner such that, after giving effect to the special allocations set forth in Section 6.02, the Capital Account balance of each Member, immediately after making such allocations, is, as nearly as possible, equal to (a) the Distributions that would be made to such Member pursuant to Section 12.03(c) if the Company were dissolved, its affairs wound up, and its assets sold for cash equal to their Book Value, all Company liabilities were satisfied (limited with respect to each Nonrecourse Liability to the Book Value of the assets securing such liability), and

the net assets of the Company were Distributed, in accordance with Section 12.03(c), to the Members immediately after making such allocations, minus (b) such Member's share of Company Minimum Gain and Member Nonrecourse Debt Minimum Gain, computed immediately prior to the hypothetical sale of assets.

Section 6.02 Regulatory and Special Allocations. Notwithstanding the provisions of Section 6.01:

(a) If there is a net decrease in Company Minimum Gain (determined according to Treasury Regulations Section 1.704-2(d)(1)) during any Fiscal Year, each Member shall be specially allocated Net Income for such Fiscal Year (and, if necessary, subsequent Fiscal Years) in an amount equal to such Member's share of the net decrease in Company Minimum Gain, determined in accordance with Treasury Regulations Section 1.704-2(g). The items to be so allocated shall be determined in accordance with Treasury Regulations Sections 1.704-2(f)(6) and 1.704-2(j)(2). This Section 6.02(a) is intended to comply with the "minimum gain chargeback" requirement in Treasury Regulations Section 1.704-2(f) and shall be interpreted consistently therewith.

(b) Member Nonrecourse Deductions shall be allocated in the manner required by Treasury Regulations Section 1.704-2(i). Except as otherwise provided in Treasury Regulations Section 1.704-2(i)(4), if there is a net decrease in Member Nonrecourse Debt Minimum Gain during any Fiscal Year, each Member that has a share of such Member Minimum Gain shall be specially allocated Net Income for such Fiscal Year (and, if necessary, subsequent Fiscal Years) in an amount equal to that Member's share of the net decrease in Member Nonrecourse Debt Minimum Gain. Items to be allocated pursuant to this paragraph shall be determined in accordance with Treasury Regulations Sections 1.704-2(i)(4) and 1.704-2(j)(2). This Section 6.02(b) is intended to comply with the "minimum gain chargeback" requirements in Treasury Regulations Section 1.704-2(i)(4) and shall be interpreted consistently therewith.

(c) In the event any Member unexpectedly receives any adjustments, allocations, or distributions described in Treasury Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5), or (6), Net Income shall be specially allocated to such Member in an amount and manner sufficient to eliminate the Adjusted Capital Account Deficit created by such adjustments, allocations, or distributions as quickly as possible. This Section 6.02(c) is intended to comply with the qualified income offset requirement in Treasury Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

(d) The allocations set forth in Section 6.02(a), Section 6.02(b), and Section 6.02(c) (the "**Regulatory Allocations**") are intended to comply with certain requirements of the Treasury Regulations under Code Section 704. Notwithstanding any other provisions of this 18ARTICLE VI (other than the Regulatory Allocations), the Regulatory Allocations shall be taken into account in allocating Net Income and Net Losses among Members so that, to the extent possible, the net amount of such allocations of Net Income and Net Losses and other items and the Regulatory Allocations to each Member shall be equal to the net amount that would have been allocated to such Member if the Regulatory Allocations had not occurred.

Section 6.03 Tax Allocations.

(a) Subject to Section 6.03(b) through Section 6.03(e), all income, gains, losses, and deductions of the Company shall be allocated, for federal, state, and local income tax purposes, among the Members in accordance with the allocation of such income, gains, losses, and deductions among the Members for computing their Capital Accounts, except that if any such allocation for tax purposes is not permitted by the Code or other Applicable Law, the Company's subsequent income, gains, losses, and deductions shall be allocated among the Members for tax purposes, to the extent permitted by the Code and other Applicable Law, so as to reflect as nearly as possible the allocation set forth herein in computing their Capital Accounts.

(b) Items of Company taxable income, gain, loss, and deduction with respect to any property contributed to the capital of the Company shall be allocated among the Members in accordance with Code Section 704(c) and the traditional method with curative allocations of Treasury Regulations Section 1.704-3(c), so as to take account of any variation between the adjusted basis of such property to the Company for federal income tax purposes and its Book Value.

(c) If the Book Value of any Company asset is adjusted pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(f) as provided in clause (c) of the definition of Book Value, subsequent allocations of items of taxable income, gain, loss, and deduction with respect to such asset shall take account of any variation between the adjusted basis of such asset for federal income tax purposes and its Book Value in the same manner as under Code Section 704(c).

(d) Allocations of tax credit, tax credit recapture, and any items related thereto shall be allocated to the Members according to their interests in such items as determined by the Manager taking into account the principles of Treasury Regulations Section 1.704-1(b)(4)(ii).

(e) Allocations pursuant to this Section 6.03 are solely for purposes of federal, state, and local taxes and shall not affect, or in any way be taken into account in computing, any Member's Capital Account or share of Net Income, Net Losses, Distributions, or other items pursuant to any provisions of this Agreement.

Section 6.04 Allocations in Respect of Transferred Units. In the event of a Transfer of Units during any Fiscal Year made in compliance with the provisions of 27ARTICLE X, Net Income, Net Losses, and other items of income, gain, loss, and deduction of the Company attributable to such Units for such Fiscal Year shall be determined using the interim closing of the books method.

Section 6.05 Curative Allocations. In the event that the Manager determines, after consultation with counsel experienced in income tax matters, that the allocation of any item of Company income, gain, loss, or deduction is not specified in this 18ARTICLE VI (an "**Unallocated Item**"), or that the allocation of any item of Company income, gain, loss, or deduction hereunder is clearly inconsistent with the Members' economic interests in the Company

(determined by reference to the general principles of Treasury Regulations Section 1.704-1(b) and the factors set forth in Treasury Regulations Section 1.704-1(b)(3)(ii)) (a "**Misallocated Item**"), then the Manager may allocate such Unallocated Items, or reallocate such Misallocated Items, to reflect such economic interests; *provided*, that no such allocation will be made without the prior consent of each Member that would be adversely and disproportionately affected thereby; and *provided*, *further*, that no such allocation shall have any material effect on the amounts Distributable to any Member, including the amounts to be Distributed upon the complete liquidation of the Company.

ARTICLE VII
DISTRIBUTIONS

Section 7.01 General.

(a) Subject to Section 7.02, and except as otherwise expressly provided in 30ARTICLE XII, all Distributions may, after allowance for payment of all debts, liabilities, and obligations of the Company then due and payable and such reserves as the Manager reasonably deems necessary to the operation of the Company's business, be made to the Members, at such times as the Manager may determine in its reasonable discretion, in the following manner:

(i) First, one hundred percent (100%) to the Investor Members in proportion to their Unreturned Capital Contributions until they have received the return of their Unreturned Capital Contributions;

(ii) Second, one hundred percent (100%) to the Investor Members in proportion to their respective Unpaid Preferred Returns until each Investor Member has received Distributions pursuant to this Section 7.01(a)(i) equal to such Investor Member's Unpaid Preferred Return;

(iii) Third, one hundred percent (100%) to the Sponsor Members in proportion to their respective Sponsor Percentage Interests until the Sponsor Members have collectively received Distributions pursuant to this Section 7.01(a)(iii) equal to twenty percent (20%) of the aggregate Distributions made pursuant to Section 7.01(a)(ii).

(iv) Fourth, eighty percent (80%) to the Investor Members in proportion to their respective Investor Percentage Interest, and twenty percent (20%) to the Sponsor Members in proportion to their respective Sponsor Percentage Interests.

(b) Notwithstanding any provision to the contrary contained in this Agreement: (i) the Members acknowledge and agree that the intent of the parties is that all distributions made to Investor Members are to be calculated on an individual basis, and the Sponsor Members shall be entitled to receive their portion of Distributions under Sections 7.01 (a)(ii), (iii), and (iv) above, as applicable, (i.e. "carried interest") calculated on an Investor-Member by Investor-Member basis; and (ii) the Company shall not make any Distribution if such Distribution would violate the Act or other Applicable Law.

(c) It is intended that the partnership interests that entitle the Sponsor Members to the distributions contemplated by Section 7.01(a)(iii) and Section 7.01(a)(iv) are equity interests being issued in consideration of the work performed by the Sponsor Members in connection with the closing of an acquisition by the Company in lieu of any cash compensation and such partnership interests will constitute Profits Interests with a threshold value and an initial capital account of $0.00. It is the further intention of the parties to this Agreement that Distributions to any Member with respect to Profits Interests be limited to the extent necessary so that the related Membership Interest constitutes a Profits Interest.

Section 7.02 Tax Distributions.

(a) In addition to any Distributions made pursuant to Section 7.01 above, the Manager may, subject to cash availability of the Company, elect to make annual distributions to the Members in an amount equal to each Member's Estimated Tax Amount for the applicable year.

(b) Any Distributions made to a Member pursuant to this Section 7.02 shall be treated for purposes of this Agreement as advances on Distributions pursuant to Section 7.01(a) and shall reduce, dollar-for-dollar, the amount otherwise Distributable to such Member pursuant to Section 7.01(a).

Section 7.03 Tax Withholding; Withholding Advances.

(a) If requested by the Manager, each Member shall, if able to do so, deliver to the Manager:

(i) an affidavit in form satisfactory to the Manager that such Member (or its members, as the case may be) is not subject to withholding under the provisions of any federal, state, local, foreign, or other Applicable Law;

(ii) any certificate that the Manager may reasonably request with respect to any such laws; and/or

(iii) any other form or instrument reasonably requested by the Manager relating to such Member's status under such law.

If a Member fails or is unable to deliver to the Manager the affidavit described in Section 7.03(a)(i), the Manager may withhold amounts from such Member in accordance with Section 7.03(b).

(b) The Company is hereby authorized at all times to make payments ("**Withholding Advances**") with respect to each Member in amounts required to discharge any obligation of the Company (as determined by the Manager based on the advice of legal or tax counsel to the Company) to withhold or make payments to any federal, state, local, or foreign taxing authority (a "**Taxing Authority**") with respect to any Distribution or allocation by the Company of income or gain to such Member (including payments made pursuant to Code Section 6225 and allocable to a Member as determined by the Manager)

and to withhold the same from Distributions to such Member. Any funds withheld from a Distribution by reason of this Section 7.03(b) shall nonetheless be deemed Distributed to the Member in question for all purposes under this Agreement and, at the option of the Manager, shall be charged against the Member's Capital Account.

(c) Each Member hereby agrees to indemnify and hold harmless the Company and the other Members from and against any liability with respect to taxes, interest, or penalties which may be asserted by reason of the Company's failure to deduct and withhold tax on amounts Distributable or allocable to such Member. The Company may pursue and enforce all rights and remedies it may have against each Member under this Section 7.03, including bringing a lawsuit to collect repayment with interest of any Withholding Advances.

(d) Neither the Company nor the Manager shall be liable for any excess taxes withheld in respect of any Distribution or allocation of income or gain to a Member. In the event of an overwithholding, a Member's sole recourse shall be to apply for a refund from the appropriate Taxing Authority.

(e) The provisions of this Section 7.03 and the obligations of a Member or former Member pursuant to Section 7.03 shall survive the termination, dissolution, liquidation, and winding up of the Company or the Transfer of such Member's Units.

Section 7.04 Distributions in Kind.

(a) The Manager may make Distributions to the Members in the form of securities or other property held by the Company. In any non-cash Distribution, the securities or property so Distributed will be Distributed among the Members in the same proportion and priority as cash.

(b) Any such Distribution of securities made in accordance with this Agreement shall be subject to such conditions and restrictions as the Manager determines are required or advisable to ensure compliance with Applicable Law. In furtherance of the foregoing, the Manager may require that the Members execute and deliver such documents as the Manager may deem necessary or appropriate to ensure compliance with all federal and state securities laws that apply to such Distribution and any further Transfer of the Distributed securities and may appropriately legend the certificates that represent such securities to reflect any restriction on Transfer with respect to such laws.

ARTICLE VIII
MANAGEMENT

Section 8.01 Management of the Company. The business and affairs of the Company shall be managed by the Manager. Subject to the provisions of this Agreement, the Manager shall have full and complete discretion to manage and control the business and affairs of the Company, to make all decisions affecting the business and affairs of the Company, and to take all such actions as it deems necessary or appropriate to accomplish the purpose of the Company set forth in Section 2.05. The actions of the Manager taken in accordance with the provisions of this Agreement shall

bind the Company. No Member of the Company and no other Person shall have any authority or right to act on behalf of or bind the Company, unless otherwise provided herein or specifically authorized by the Manager pursuant to a resolution expressly authorizing such action duly adopted by the Manager.

Section 8.02 Investment of Fund Proceeds. For the avoidance of doubt, the Manager of the Company shall have the exclusive authority to: (i) make and manage investments of capital invested in the Company, including, without limitation, in relation to the Business, and/or investments tangentially related thereto, which investments may further be: (a) direct or indirect through intermediary entities; (b) in control or non-control investments; and/or (c) made in the form of debt or equity investments ("Company Investments"); and (ii) utilize fund invested in the Company to and further advance such Company Investments, including, without limitation, through payment of costs and fees associated with development, construction, and/or management of assets in which the Company invests.

Section 8.03 Officers. The Manager may appoint individuals as officers of the Company (the "**Officers**") as it deems necessary or desirable to carry on the business of the Company and the Manager may delegate to such Officers such power and authority as the Manager deems advisable. No Officer need be a Member of the Company. Any individual may hold two or more offices of the Company. Each Officer shall hold office until such Officer's successor is designated by the Manager or until such Officer's earlier death, resignation, or removal. Any Officer may resign at any time on written notice to the Manager. Any Officer may be removed by the Manager with or without cause at any time. A vacancy in any office occurring because of death, resignation, removal, or otherwise, may, but need not, be filled by the Manager.

Section 8.04 Compensation and Reimbursement of Manager. Except as expressly provided in this Agreement, the Manager shall not be entitled to any fees, compensation, or other remuneration for its services as Manager or otherwise hereunder, except that the Company shall reimburse the Manager for all ordinary and necessary expenses incurred by it or its Affiliate in the performance of such services in accordance with this Agreement. Any such reimbursed expenses shall be reasonable in amount in the aggregate for any Fiscal Year. Notwithstanding the foregoing, it is understood and agreed that the Manager or its Affiliate: (i) will enter into Management or Advisory Services Agreements with the operating companies in which it directly or indirectly invests, and will be paid a market standard advisory fee in connection with the services rendered pursuant to such agreement; and (ii) in connection with any acquisitions undertaken by the Company or its direct or indirect subsidiaries, the Manager or its Affiliate will charge a market standard closing fee in connection with the services rendered in connection with such activities.

Section 8.05 Removal, Resignation, Replacement of Manager.

(a) The Manager may be removed at any time, with or without cause, by the Sponsor Requisite Members; *provided* that such removal shall not become effective unless a successor to the removed Manager has been appointed in accordance with Section 8.05(c), effective as of the removal date;

(b) The Manager may resign at any time as Manager by delivering written notice of resignation to the Company (with a copy to the other Members) at least thirty (30) days before the effective date of such resignation.

(c) If the Manager is removed in accordance with Section 8.05(a), resigns, or otherwise ceases to be a Member or Manager, the Sponsor Requisite Members shall appoint a Member to serve as successor Manager; *provided, however*, that such Sponsor Members may alternatively elect to dissolve the Company in accordance with Section 12.01(a).

(d) From and after a former Manager's ceasing to be the Manager, whether due to their removal pursuant to Section 8.05(a), resignation, or otherwise in accordance with this Agreement, such Person shall no longer exercise any authority or act as the managing member of the Company, including pursuant to Section 8.01; *provided, however*, that any such removal or resignation of the Manager in such capacity shall not otherwise affect its rights as a Member or constitute a withdrawal of such Member from the Company.

Section 8.06 Other Activities. Each Member and the Manager, and such Member's and Manager's Affiliates may, subject to performing any of their obligations set out in this Agreement, engage in any other activities, ventures, or businesses, regardless of whether those activities, ventures, or businesses are similar to or competitive with the Business. None of the Members, Manager, nor any of their respective Affiliates shall be obligated to account to the Company or to any other Member for any profits or income earned or derived from such other unrestricted activities, ventures, or businesses.

Section 8.07 No Personal Liability. Except as otherwise provided in the Act, by Applicable Law, or expressly in this Agreement, no Member, Manager, or Officer will be obligated personally for any debt, obligation, or liability of the Company, whether arising in contract, tort, or otherwise, solely by reason of being a Member, Manager, or Officer.

ARTICLE IX
PREEMPTIVE RIGHTS

Section 9.01 Preemptive Right.

(a) **Issuance of New Securities.** If the Company proposes to raise capital through the issuance of any New Securities (an "**Issuance**"), the Company shall deliver written notice of its proposal to raise capital through such issuance or sale to each of the Sponsor Members and Investor Members. For purposes hereof, "**New Securities**" shall include any and all new issuances of Units (other than Units that are authorized for issuance on the date hereof) and any securities of the Company convertible into, or exchangeable or exercisable for, such Units, other than Units issued or sold by the Company in connection with: (A) a grant to any existing or prospective Officers, employees, consultants, or other service providers to the Company pursuant to any profits interest or similar equity-based plan or other compensation agreement; (B) the conversion or exchange of any securities of the Company into Units, or the exercise of any warrants or other rights to acquire Units; (C) any acquisition by the Company of any equity interests, assets, properties, or business of

any Person; (D) any merger, consolidation, or other business combination involving the Company and a Third Party Purchaser; (E) the commencement of any Public Offering of Units or other equity interests of the Company or a successor corporation; (F) any subdivision of Units (by a split of Units or otherwise), payment of Distributions, or any similar recapitalization; (G) any issuance to lenders or other financing sources (excluding the Members and their Affiliates) in an arm's-length transaction in which such lenders or other financing sources provide debt financing to the Company; (H) a joint venture, strategic alliance, or other commercial relationship with any Person (including Persons that are customers, suppliers, or strategic partners of the Company, but excluding the Members and their Affiliates) relating to the operation of the Company's business and not for the primary purpose of raising equity capital; (I) any issuance of Sponsor Units, or equivalent thereto; or (J) any office lease or equipment lease or similar equipment financing transaction in which the Company obtains from a lessor or vendor (excluding the Members and their Affiliates) the use of such office space or equipment for its business.

(b) **Issuance Notices.** With respect to the Sponsor Members and Investor Members, the purchase right notice (the "**Member Purchase Right Notice**") must: (i) specify the number of Units of New Securities that the Company proposes to issue or sell (the "**Issued Securities**"); (ii) describe the consideration per Unit of New Securities (expressed as a value in cash, the "**Issued Price**"); (iii) describe the material terms and conditions upon which the Company proposes to issue or sell the Issued Securities (the "**Issued Terms**"); and (iv) offer to sell to each of the Members (or their designees) that number of units of the New Securities required for such Member (together with such Member's designee, if any) to maintain their respective Investor Percentage Interest (or equivalent thereto) in the Company at the Issued Price and on the Issued Terms in accordance with this Section 9.01(b). Each Sponsor Member and Investor Member shall have an option, exercisable for a period of ten (10) business days from the date of delivery of the Member Purchase Right Notice (the "**Purchase Period**"), to purchase (x) such Member's pro rata portion of the Issued Securities, based on such Member's Investor Percentage Interest in the Company as of the date of the Member Purchase Right Notice and (y) such Member's pro rata portion of any Issued Securities not purchased by the other Members pursuant to clause (x), based on the ratio of the number of Sponsor Units and Investor Units owned by such Member to the total number of Sponsor Units and Investor Units owned by all Members who have elected to purchase the Issued Securities pursuant to clause (x), for the Issued Price and on the Issued Terms (the "**Purchase Right**"). Each Member shall exercise its Purchase Right by delivering a written notice within such ten (10) day period to the Company, which written notice shall include a representation letter certifying that such Member is an "accredited investor" within the meaning of Rule 501 under the Securities Act. Such written notice shall constitute an irrevocable commitment by such Member to purchase the number of Issued Securities set forth in such notice in accordance with the Purchase Right Notice and this Section 9.01(b).

ARTICLE X
TRANSFER

Section 10.01 General Restrictions on Transfer.

(a) Each Member acknowledges and agrees that such Member shall not Transfer any Units except with the prior written consent of the Manager. Any transfer, or attempted transfer, in violation of this Section 10.01 shall be deemed *void ab initio*.

(b) Notwithstanding any other provision of this Agreement, each Member agrees that such Member will not Transfer any of such Member's Units, and the Company agrees that it shall not issue any Units:

(i) except as permitted under the Securities Act and other applicable federal or state securities or blue sky laws, and then, with respect to a Transfer of Units, if requested by the Manager, only upon delivery to the Company of an opinion of counsel in form and substance satisfactory to the Company to the effect that such Transfer may be effected without registration under the Securities Act;

(ii) if such Transfer or issuance would cause the Company to be considered a "publicly traded partnership" under Code Section 7704(b);

(iii) if such Transfer or issuance would affect the Company's existence or qualification as a limited liability company under the Act;

(iv) if such Transfer or issuance would cause the Company to lose its status as a partnership for federal income tax purposes;

(v) if such Transfer or issuance would cause the Company to be required to register as an investment company under the Investment Company Act of 1940;

(vi) if such Transfer or issuance would cause the assets of the Company to be deemed "Plan Assets" as defined under the Employee Retirement Income Security Act of 1974 or its accompanying regulations or result in any "prohibited transaction" thereunder involving the Company; or

(vii) in the case of a Transfer, if the Manager, acting in good faith, determines that such Transfer could have a material adverse effect on the Company as a result of any regulatory or other requirement or restriction imposed by any Governmental Authority.

(c) Any Transfer or attempted Transfer of any Units in violation of this Agreement shall be null and void, no such Transfer shall be recorded on the Company's books, and the purported Transferee in any such Transfer shall not be treated (and the purported Transferor shall continue to be treated) as the owner of such Units for all purposes of this Agreement.

ARTICLE XI
ACCOUNTING; REPORTING; TAX MATTERS

Section 11.01 Books and Records. The Manager shall maintain or cause to be maintained at the office of the Company full and accurate books of the Company (which at all times shall remain the property of the Company), in the name of the Company, and separate and apart from the books of the Manager and its Affiliates, including true and complete accounts of all transactions of or on behalf of the Company, a list of the names, addresses, and interests of all Members, and all other books, records, and information required by the Act. The Company's books and records shall be maintained in accordance with GAAP.

Section 11.02 Financial Statements. The Manager shall, at the expense of the Company, cause to be furnished to each Member, as soon as available, and in any event within one hundred twenty (120) days after the end of each Fiscal Year, internal consolidated balance sheets of the Company as at the end of each such Fiscal Year and audited consolidated statements of income, cash flows, and Members' equity for such Fiscal Year, in each case setting forth in comparative form the figures for the previous Fiscal Year.

Section 11.03 Other Informational Rights. In addition to the information required to be provided pursuant to Section 11.02 and Section 13.03(c), the Manager shall keep the Members informed on a timely basis of any occurrence, pending or threatened claims, or other development that could reasonably be expected to have a material adverse impact on the operations or financial position of the Company.

Section 11.04 Inspection Rights. The Manager shall cause the Company to provide, and the Company shall provide, the Members and any Representatives designated by any Member, upon reasonable notice and during normal business hours and at such Member's sole cost and expense, reasonable access for any purpose reasonably related to such Member's interest as a Member to (a) visit and inspect the properties of the Company; (b) examine the books and records of the Company; and (c) consult with the Manager, the Officers, and independent accountants of the Company concerning the business, finances, and affairs of the Company.

Section 11.05 Tax Matters Representative.

(a) Appointment. The Members hereby appoint Jackson Rimpas as the "partnership representative" as provided in Code Section 6223(a) (the "**Tax Matters Representative**"). If Jackson Rimpas ceases to be the Tax Matters Representative for any reason, the Manager shall appoint a new Tax Matters Representative.

(b) **Tax Examinations and Audits**. The Tax Matters Representative is authorized and required to represent the Company (at the Company's expense) in connection with all examinations of the Company's affairs by Taxing Authorities, including resulting administrative and judicial proceedings, and to expend Company funds for professional services and costs associated therewith. The Tax Matters Representative shall have sole authority to act on behalf of the Company in any such examinations and any resulting judicial proceedings and shall have sole discretion to determine whether the Company (either on its own behalf or on behalf of the Members) will contest or continue to

contest any tax deficiencies assessed or proposed to be assessed by any Taxing Authority. The Company and the Members shall be bound by the actions taken by the Tax Matters Representative.

(c) **US Federal Tax Proceedings.** In the event of an audit of the Company that is subject to the Partnership Tax Audit Rules, the Tax Matters Representative shall have the right to make any and all elections and to take any actions that are available to be made or taken by the Tax Matters Representative or the Company under the Partnership Tax Audit Rules (including any election under Code Section 6226), subject to approval by the Sponsor Requisite Members. If an election under Code Section 6226(a) is made, the Company shall furnish to each Member for the year under audit a statement of the Member's share of any adjustment set forth in the notice of final partnership adjustment, and each Member shall take such adjustment into account as required under Code Section 6226(b). To the extent that the Tax Matters Representative does not make an election under Code Section 6221(b) or Code Section 6226, the Company shall use commercially reasonable efforts to make any modifications available under Code Section 6225(c)(3), (4), and (5), to the extent such modification would reduce any taxes payable by the Company. Each Member agrees to cooperate with the Tax Matters Representative and to do or refrain from doing any or all things reasonably requested by the Tax Matters Representative with respect to the conduct of examinations under the Partnership Tax Audit Rules; *provided*, that, except as otherwise agreed by the Tax Matters Representative and the Sponsor Requisite Members (regarding all Members), a Member shall not be required to file an amended federal income tax return, as described in Code Section 6225(c)(2)(A), or pay any tax due and provide information to the Internal Revenue Service as described in Code Section 6225(c)(2)(B).

(d) **Tax Returns and Tax Deficiencies.** Each Member agrees that such Member shall not treat any Company item inconsistently on such Member's federal, state, foreign, or other income tax return with the treatment of the item on the Company's return. Any deficiency for taxes imposed on any Member (including penalties, additions to tax, or interest imposed with respect to such taxes and any tax deficiency imposed pursuant to Code Section 6226) will be paid by such Member and if required to be paid (and actually paid) by the Company, will be recoverable from such Member as provided in Section 7.03(c).

(e) **Survival.** The provisions of this Section 11.05 and the obligations of a Member or former Member pursuant to Section 11.05 shall survive the termination, dissolution, liquidation, and winding up of the Company or the Transfer of such Member's Units.

Section 11.06 Tax Returns. At the expense of the Company, the Manager (or any Officer that it may designate pursuant to Section 8.03) shall cause the preparation and timely filing (including extensions) of all tax returns required to be filed by the Company pursuant to the Code as well as all other required tax returns in each jurisdiction in which the Company owns property or does business. As soon as reasonably possible after the end of each Fiscal Year, the Manager or designated Officer shall cause to be delivered to each Person who was a Member at any time during such Fiscal Year, IRS Schedule K-1 to Form 1065 and such other information with respect to the

Company as may be necessary for the preparation of such Person's federal, state, and local income tax returns for such Fiscal Year.

Section 11.07 Company Funds. All funds of the Company shall be deposited in its name in such federally insured checking, savings, or other bank accounts, or held in its name in the form of such other investments as shall be designated by the Manager. The funds of the Company shall not be commingled with the funds of any other Person. All withdrawals of such deposits or liquidations of such investments by the Company shall be made exclusively upon the signature of the Manager or signatures of such Officer or Officers as the Manager may designate.

ARTICLE XII
DISSOLUTION AND LIQUIDATION

Section 12.01 Events of Dissolution. The Company shall be dissolved and its affairs wound up only upon the occurrence of any of the following events:

(a) An election to dissolve the Company made by Manager;

(b) The sale, exchange, involuntary conversion, or other disposition or transfer of all or substantially all the assets of the Company; or

(c) The entry of a decree of judicial dissolution under Section 18-802 of the Act.

Section 12.02 Effectiveness of Dissolution. Dissolution of the Company shall be effective on the day on which the event described in Section 12.01 occurs, but the Company shall not terminate until the winding up of the Company has been completed, the assets of the Company have been Distributed as provided in Section 12.03, and the Certificate of Formation shall have been cancelled as provided in Section 12.04.

Section 12.03 Liquidation. If the Company is dissolved pursuant to Section 12.01, the Company shall be liquidated and its business and affairs wound up in accordance with the Act and the following provisions:

(a) **Liquidator.** The Manager, or, if the Manager is unable to do so, a Person selected by the Sponsor Requisite Members, shall act as liquidator to wind up the Company (the "**Liquidator**"). The Liquidator shall have full power and authority to sell, assign, and encumber any or all of the Company's assets and to wind up and liquidate the affairs of the Company in an orderly and business-like manner.

(b) **Accounting.** As promptly as possible after dissolution and again after final liquidation, the Liquidator shall cause a proper accounting to be made by a recognized firm of certified public accountants of the Company's assets, liabilities, and operations through the last day of the calendar month in which the dissolution occurs or the final liquidation is completed, as applicable.

(c) **Distribution of Proceeds.** The Liquidator shall liquidate the assets of the Company and Distribute the proceeds of such liquidation in the following order of priority, unless otherwise required by mandatory provisions of Applicable Law:

(i) *First*, to the payment of all of the Company's debts and liabilities to its creditors (including Members, if applicable) and the expenses of liquidation (including sales commissions incident to any sales of assets of the Company);

(ii) *Second*, to the establishment of and additions to reserves that are determined by the Liquidator to be reasonably necessary for any contingent or unforeseen liabilities or obligations of the Company; and

(iii) *Third*, to the Members, in the same manner as Distributions are made under and pursuant to Section 7.01(a).

(d) **Discretion of Liquidator.** Notwithstanding Section 7.04 or the provisions of Section 12.03(c) that require the liquidation of the assets of the Company, but subject to the order of priorities set forth in Section 12.03(c), if upon dissolution of the Company the Liquidator determines that an immediate sale of part or all of the Company's assets would be impractical or could cause undue loss to the Members, the Liquidator may defer the liquidation of any assets except those necessary to satisfy Company liabilities and reserves, and may, in its absolute discretion, Distribute to the Members, in lieu of cash, as tenants in common and in accordance with the provisions of Section 12.03(c), undivided interests in such Company assets as the Liquidator deems not suitable for liquidation. Any such Distribution in kind shall be subject to such conditions relating to the disposition and management of such properties as the Liquidator, acting in good faith, deems reasonable and equitable and to any agreements governing the operating of such properties at such time. For purposes of any such Distribution, any property to be Distributed shall be valued at its Fair Market Value, as determined by the Liquidator in good faith.

(e) **Maintenance of Records.** All documents and records of the Company, including financial records, shall be delivered to the Manager upon dissolution of the Company. The Manager shall retain such documents and records for a period of not less than seven years and shall make such documents and records reasonably available during normal business hours to the other Members and their Affiliates for inspection and copying, provided that such access does not unduly interfere with the management and business of the Manager.

Section 12.04 Cancellation of Certificate. Upon completion of the Distribution of the assets of the Company as provided in Section 12.03(c), the Company shall be terminated and the Liquidator shall cause the cancellation of the Certificate of Formation in the State of Delaware and of all qualifications and registrations of the Company as a foreign limited liability company in jurisdictions other than the State of Delaware and shall take such other actions as may be necessary to terminate the Company.

Section 12.05 Survival of Rights, Duties, and Obligations. Dissolution, liquidation, winding up, or termination of the Company for any reason shall not release any party from any

Loss which at the time of such dissolution, liquidation, winding up, or termination already had accrued to any other party or which thereafter may accrue in respect of any act or omission prior to such dissolution, liquidation, winding up, or termination. For the avoidance of doubt, none of the foregoing shall replace, diminish, or otherwise adversely affect any Member's right to indemnification pursuant to Section 13.03. The provisions of Section 12.03(e) shall survive the dissolution, liquidation, winding up, and termination of the Company in accordance with their terms.

Section 12.06 Recourse for Claims. Each Member shall look solely to the assets of the Company for all Distributions with respect to the Company, such Member's Capital Account, and such Member's share of Net Income, Net Loss, and other items of income, gain, loss, and deduction, and shall have no recourse therefor (upon dissolution or otherwise) against any Manager, the Liquidator, or any other Member.

ARTICLE XIII
EXCULPATION AND INDEMNIFICATION

Section 13.01 Exculpation of Covered Persons.

(a) **Covered Persons.** As used herein, the term "**Covered Person**" shall mean each (i) Member, (ii) Manager; (iii) Tax Matters Representative; and (iv) Officer, employee, agent, or representative of the Company.

(b) **Standard of Care.** No Covered Person shall be liable to the Company or any other Covered Person for any loss, damage, or claim incurred by reason of any action taken or omitted to be taken by such Covered Person in their capacity as a Covered Person, whether or not such Person continues to be a Covered Person at the time such loss, damage, or claim is incurred or imposed, so long as such action or omission does not constitute fraud, gross negligence, willful misconduct, or a breach by such Covered Person of this Agreement or any of such Covered Person's or such Covered Person's Affiliate's other agreements with the Company.

(c) **Good Faith Reliance.** A Covered Person shall be fully protected in relying in good faith upon the records of the Company and upon such information, opinions, reports, or statements (including financial statements and information, opinions, reports, or statements as to the value or amount of the assets, liabilities, Net Income, or Net Losses of the Company, or any facts pertinent to the existence and amount of assets from which Distributions might properly be paid) of the following Persons or groups: (i) the Manager; (ii) one or more Officers or employees of the Company; (iii) any attorney, independent accountant, appraiser, or other expert or professional employed or engaged by or on behalf of the Company; or (iv) any other Person selected in good faith by or on behalf of the Company, in each case as to matters that such relying Person reasonably believes to be within such other Person's professional or expert competence. The preceding sentence shall in no way limit any Person's right to rely on information to the extent provided in the Act.

Section 13.02 Liabilities and Duties of Covered Persons.

(a) **Limitation of Liability.** This Agreement is not intended to, and does not, create or impose any fiduciary duty on any Covered Person. Furthermore, each of the Members and the Company hereby waives any and all fiduciary duties that, absent such waiver, may be implied by Applicable Law, and in doing so, acknowledges and agrees that the duties and obligations of each Covered Person to each other and to the Company are only as expressly set forth in this Agreement. The provisions of this Agreement, to the extent that they restrict the duties and liabilities of a Covered Person otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Covered Person.

(b) **Duties.** Whenever in this Agreement a Covered Person is permitted or required to make a decision (including a decision that is in such Covered Person's "discretion" or under a grant of similar authority or latitude), the Covered Person shall be entitled to consider only such interests and factors as such Covered Person desires, including such Covered Person's own interests, and shall have no duty or obligation to give any consideration to any interest of or factors affecting the Company or any other Person. Whenever in this Agreement a Covered Person is permitted or required to make a decision in such Covered Person's "good faith," the Covered Person shall act under such express standard and shall not be subject to any other or different standard imposed by this Agreement or any other Applicable Law.

(c) **Limitation; Conflicts of Interest.** To the maximum extent permitted by applicable law, the Company and each Member waives any claim or cause of action against each Manager and each and their respective Affiliates, employees, agents and Representatives for any breach of any fiduciary duty to the Company or its Members or any of the Company's subsidiaries by any such Person, including as may result from any conflict of interest, including a conflict of interest between the Company or its Members or any of the Company's subsidiaries and such Person or otherwise, any breach of loyalty or any breach of the duty of care; provided that, with respect to actions or omissions by a Manager, such waiver shall not apply to the extent the act or omission was attributable to such Manager's gross negligence, willful misconduct, bad faith, fraud or knowing violation of law, in each case as determined by a final judgment, order or decree of an arbitrator or a court of competent jurisdiction (which is not appealable or with respect to which the time for appeal therefrom has expired and no appeal has been perfected). Each Member acknowledges and agrees that the Manager or its Affiliates may raise money through parallel funds, co-investment vehicles, or other investment vehicles that are unrelated to the Company, that investments made by such vehicles may have different interests than those of the Company, and that each such Member waives any conflict of interest in connection therewith. Each Member acknowledges and agrees that in the event of any such conflict of interest, each such Person (in the absence of bad faith) may act in the best interests of such Person or its Affiliates, employees, agents and Representatives.

Section 13.03 Indemnification.

(a) To the fullest extent permitted by the Act, as the same now exists or may hereafter be amended, substituted, or replaced (but, in the case of any such amendment, substitution, or replacement, only to the extent that such amendment, substitution, or replacement permits the Company to provide broader indemnification rights than the Act permitted the Company to provide prior to such amendment, substitution, or replacement), the Company shall indemnify, hold harmless, defend, pay, and reimburse any Covered Person from and against any and all losses, claims, damages, judgments, fines, or liabilities, including reasonable legal fees or other expenses incurred in investigating or defending against such losses, claims, damages, judgments, fines, or liabilities, and any amounts expended in settlement of any claims (collectively, "**Losses**") to which such Covered Person may become subject by reason of:

(i) Any act or omission or alleged act or omission performed or omitted to be performed on behalf of the Company in connection with the Business of the Company; or

(ii) The fact that such Covered Person is or was acting in connection with the business of the Company as a manager, officer, employee, or agent of the Company or that such Covered Person is or was serving at the request of the Company as a manager, director, officer, employee, or agent of any other Person;

provided, that (x) such Covered Person acted in good faith and in a manner believed by such Covered Person to be in, or not opposed to, the best interests of the Company, and, with respect to any criminal proceeding, had no reasonable cause to believe their conduct was unlawful, and (y) such Covered Person's conduct did not constitute fraud, gross negligence, willful misconduct, or a breach by such Covered Person of this Agreement or any of such Covered Person's or such Covered Person's Affiliate's other agreements with the Company, in either case as determined by a final, non-appealable order of a court of competent jurisdiction. In connection with the foregoing, the termination of any action, suit, or proceeding by judgment, order, settlement, conviction, or upon a plea of *nolo contendere* or its equivalent, shall not, of itself, create a presumption that the Covered Person did not act in good faith or, with respect to any criminal proceeding, had reasonable cause to believe that such Covered Person's conduct was unlawful, or that the Covered Person's conduct constituted fraud, gross negligence, willful misconduct, or a breach by such Covered Person of this Agreement or any of such Covered Person's or such Covered Person's Affiliate's other agreements with the Company.

(b) **Advancement.** To the fullest extent permitted by Applicable Law, expenses (including reasonable legal fees and expenses) incurred by a Covered Person in connection with investigating, preparing to defend, or defending any claim relating to any Losses for which such Covered Person may be entitled to be indemnified pursuant to Section 13.03(a) shall, from time to time, be advanced by the Company prior to a final, non-appealable determination of a court of competent jurisdiction that, in respect of such matter, such Covered Person is not entitled to indemnification for such Losses; *provided, however,* that the Covered Person shall have provided to the Company (i) written affirmation of such

Covered Person's good faith belief that such Covered Person has met the standard of conduct necessary for indemnification for such Losses under Section 13.03(a); and (ii) an undertaking to repay all such advanced amounts if it shall ultimately be determined that the Covered Person is not entitled to such indemnification.

(c) **Notice of Proceeding.** The Manager shall promptly report the commencement of any proceeding regarding or claim for indemnification under this Section 13.03, and the material details and developments in respect thereof, to the Members.

(d) **Entitlement to Indemnity.** The indemnification provided by this Section 13.03 shall not be deemed exclusive of any other rights to indemnification to which those seeking indemnification may be entitled under any agreement or otherwise. The provisions of this Section 13.03 shall continue to afford protection to each Covered Person regardless of whether such Covered Person remains in the position or capacity pursuant to which such Covered Person became entitled to indemnification under this Section 13.03 and shall inure to the benefit of the executors, administrators, legatees, and distributees of such Covered Person.

(e) **Funding of Indemnification Obligation.** Notwithstanding anything contained herein to the contrary, any indemnity by the Company relating to the matters covered in this Section 13.03 shall be provided out of and to the extent of Company assets only, and no Member (unless such Member otherwise agrees in writing) shall have personal liability on account thereof or shall be required to make additional Capital Contributions to help satisfy such indemnity by the Company.

(f) **Savings Clause.** If this Section 13.03 or any portion hereof shall be invalidated on any ground by any court of competent jurisdiction, then the Company shall nevertheless indemnify and hold harmless each Covered Person pursuant to this Section 13.03 to the fullest extent permitted by any applicable portion of this Section 13.03 that shall not have been invalidated and to the fullest extent permitted by Applicable Law.

(g) **Amendment.** The provisions of this Section 13.03 shall be a contract between the Company, on the one hand, and each Covered Person who served in such capacity at any time while this Section 13.03 is in effect, on the other hand, pursuant to which the Company and each such Covered Person intend to be legally bound. No amendment, modification, or repeal of this Section 13.03 that adversely affects the rights of a Covered Person to indemnification for Losses incurred or relating to a state of facts existing prior to such amendment, modification, or repeal shall apply in such a way as to eliminate or reduce such Covered Person's entitlement to indemnification for such Losses without the Covered Person's prior written consent.

Section 13.04 Survival. The provisions of this 32ARTICLE XIII shall survive the dissolution, liquidation, winding up, and termination of the Company.

ARTICLE XIV
MISCELLANEOUS

Section 14.01 Confidentiality. Each Member shall, and shall cause each of such Member's Affiliates to, maintain, at all times (including after any time that such Member ceases to be a Member), the confidentiality of all information furnished to such Member pertaining to the Company ("**Confidential Information**"), other than information that such Member can demonstrate (a) is or becomes generally available to the public other than as a result of a disclosure by such Member or such Member's Affiliates or Representatives; (b) becomes available to such Member on a non-confidential basis from a third party who is not known by such Member to be prohibited by any obligation of confidentiality owed to the Company from transmitting the information to such Member; or (c) was already in the possession of such Member or such Member's Affiliate prior to their becoming a Member; *provided, however*, that the prohibitions set forth in this Section 14.01 shall not prohibit disclosure of Confidential Information (i) to Representatives of such Member who, in the reasonable judgment of such Member, have a need to know such information; (ii) to any investor in the equity or assets of such Member or its Affiliate as part of disclosures to such investor in the ordinary course of such Member's or its Affiliate's business; (iii) to any bona fide prospective Transferee of such Member; (iv) to the extent necessary in the course of performing such Member's obligations or enforcing any remedy under this Agreement or the agreements expressly contemplated hereby; or (v) as is required to be disclosed by a court of competent jurisdiction, administrative body, or governmental body or by subpoena, summons, or legal process, or by Applicable Law; *provided* that, to the extent permitted by Applicable Law, the Member required to make such disclosure shall provide to the Manager prompt notice of such disclosure. The obligations of a Member pursuant to Section 14.01 shall survive the termination, dissolution, liquidation, and winding up of the Company or the Transfer of such Member's Units.

Section 14.02 Expenses. Except as otherwise expressly provided herein, all costs and expenses, including fees and disbursements of counsel, financial advisors, and accountants, incurred in connection with the preparation and execution of this Agreement, or any amendment or waiver hereof, and the transactions contemplated hereby shall be paid by the party incurring such costs and expenses. Without limiting the foregoing, all fees and expenses incurred by the Manager or its Affiliates or the Company in connection with the organization and formation of the Company and the Manager (including any related legal, tax advisory, and accounting fees and expenses) shall be borne by the Manager.

Section 14.03 Further Assurances. Each Member shall execute all such certificates and other documents and do all such filing, recording, publishing, and other acts as the Manager deems necessary or appropriate to comply with the requirements of the Act or Applicable Law relating to the formation and operation of the Company and the acquisition, operation, or holding of its property.

Section 14.04 Notices. All notices, requests, consents, claims, demands, waivers, and other communications hereunder shall be in writing and shall be deemed to have been given: (a) when delivered by hand (with written confirmation of receipt); (b) when received by the addressee if sent by a nationally recognized overnight courier (receipt requested); (c) on the date sent by facsimile or email of a PDF document (with confirmation of transmission) if sent during normal

business hours of the recipient, and on the next Business Day if sent after normal business hours of the recipient; or (d) on the third day after the date mailed, by certified or registered mail, return receipt requested, postage prepaid. Such communications must be sent to the respective parties at the following addresses (or at such other address for a party as shall be specified in a notice given in accordance with this Section 14.04):

If to the Company:	Atomus KCP Investment Holdings LLC 161 High Road, Newbury MA 01951 Attention: Jackson Rimpas; Luke Prendergast E-Mail: jrimpas@aepequity.com; lprendergast@aepequity.com
with a copy to:	Lippes Mathias LLP 50 Fountain Plaza, Suite 1700 Buffalo, NY 14202 Email: sbalkin@lippes.com; abecker@lippes.com Attention: Sean P. Balkin and Alana M. Becker

If to a Member, to such Member's respective mailing address or email address, as set forth on the Members Schedule or provided by such Member from time to time.

Section 14.05 Headings. The headings in this Agreement are inserted for convenience or reference only and are in no way intended to describe, interpret, define, or limit the scope, extent, or intent of this Agreement or any provision of this Agreement.

Section 14.06 Severability. If any term or provision of this Agreement is held to be invalid, illegal, or unenforceable under Applicable Law in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Except as provided in Section 13.03(f), upon such determination that any term or other provision is invalid, illegal, or unenforceable, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

Section 14.07 Entire Agreement. This Agreement, together with the Certificate of Formation, and all related Exhibits and Schedules, constitutes the sole and entire agreement of the parties to this Agreement with respect to the subject matter contained herein and therein, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter.

Section 14.08 Successors and Assigns. Subject to the restrictions on Transfers set forth herein, this Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective heirs, executors, administrators, successors, and permitted assigns. This Agreement may not be assigned by any Member except as permitted by this Agreement and any assignment in violation of this Agreement shall be null and void.

Section 14.09 No Third-Party Beneficiaries. Except as provided in 32ARTICLE XIII, which shall be for the benefit of and enforceable by Covered Persons as described therein, this Agreement is for the sole benefit of the parties hereto (and their respective heirs, executors, administrators, successors, and permitted assigns) and nothing herein, express or implied, is intended to or shall confer upon any other Person, including any creditor of the Company, any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

Section 14.10 Amendment.

(a) No provision of this Agreement may be amended or modified except by an instrument in writing executed by the Manager on behalf of the Company. Any such written amendment or modification will be binding upon the Company and each Member; *provided*, that an amendment or modification modifying the rights or obligations of (x) any Member in a manner that is disproportionately adverse to such Member relative to the rights of other Members in respect of Units of the same class or series or (y) a class or series of Units in a manner that is disproportionately adverse to such class or series relative to the rights of another class or series of Units, shall in either case be effective only with that Member's consent or the consent of the Members holding a majority of the Units in that disproportionately affected class or series.

(b) Notwithstanding Section 14.10(a), the Manager may, without the consent of or execution by the Members, amend or modify (i) this Agreement in accordance with the provisions of Section 3.03 and (ii) the Members Schedule in accordance with Section 4.01(b).

Section 14.11 Waiver. No waiver by any party of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by the party so waiving. No waiver by any party shall operate or be construed as a waiver in respect of any failure, breach, or default not expressly identified by such written waiver, whether of a similar or different character, and whether occurring before or after that waiver. No failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof, nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege. For the avoidance of doubt, nothing contained in this Section 14.11 shall diminish any of the explicit and implicit waivers described in this Agreement.

Section 14.12 Governing Law. All issues and questions concerning the application, construction, validity, interpretation, and enforcement of this Agreement shall be governed by and construed in accordance with the internal laws of the State of Delaware, without giving effect to any choice or conflict of law provision or rule (whether of the State of Delaware or any other jurisdiction) that would cause the application of laws of any jurisdiction other than those of the State of Delaware.

Section 14.13 Submission to Jurisdiction. The parties hereby agree that any suit, action, or proceeding seeking to enforce any provision of, or based on any matter arising out of or in connection with, this Agreement or the transactions contemplated hereby, whether in contract, tort,

or otherwise, shall be brought in a court of competent jurisdiction situated in Wilmington County, Delaware, so long as one of such courts shall have subject matter jurisdiction over such suit, action, or proceeding, and that any cause of action arising out of this Agreement shall be deemed to have arisen from a transaction of business in the State of Delaware. Each of the parties hereby irrevocably consents to the jurisdiction of such courts (and of the appropriate appellate courts therefrom) in any such suit, action, or proceeding and irrevocably waives, to the fullest extent permitted by law, any objection that it may now or hereafter have to the laying of the venue of any such suit, action, or proceeding in any such court or that any such suit, action, or proceeding which is brought in any such court has been brought in an inconvenient form. Service of process, summons, notice, or other document by registered mail to the address set forth in Section 14.04 shall be effective service of process for any suit, action, or other proceeding brought in any such court.

Section 14.14 Waiver of Jury Trial. Each party hereto hereby acknowledges and agrees that any controversy which may arise under this Agreement is likely to involve complicated and difficult issues and, therefore, each such party irrevocably and unconditionally waives any right such party may have to a trial by jury in respect of any legal action arising out of or relating to this Agreement or the transactions contemplated hereby.

Section 14.15 Equitable Remedies. Each party hereto acknowledges that a breach or threatened breach by such party of any of such party's obligations under this Agreement would give rise to irreparable harm to the other parties, for which monetary damages would not be an adequate remedy, and hereby agrees that in the event of a breach or a threatened breach by such party of any such obligations, each of the other parties hereto shall, in addition to any and all other rights and remedies that may be available to them in respect of such breach, be entitled to equitable relief, including a temporary restraining order, an injunction, specific performance, and any other relief that may be available from a court of competent jurisdiction (without any requirement to post bond).

Section 14.16 Attorneys' Fees. In the event that any party hereto institutes any legal suit, action, or proceeding, including arbitration, against another party in respect of a matter arising out of or relating to this Agreement, the prevailing party in the suit, action, or proceeding shall be entitled to receive, in addition to all other damages to which such party may be entitled, the costs incurred by such party in conducting the suit, action, or proceeding, including reasonable attorneys' fees and expenses, and court costs.

Section 14.17 Remedies Cumulative. Except to the extent otherwise expressly provided herein, the rights and remedies under this Agreement are cumulative and are in addition to and not in substitution for any other rights and remedies available at law or in equity or otherwise.

Section 14.18 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Agreement delivered by facsimile, email, or other means of Electronic Transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

Section 14.19 Side Letters. The Members and Company agree that the Company may, from time to time, enter into a side letter or similar agreement with certain Members that has the effect of establishing rights or otherwise benefiting such Members, provided, however, no such side letter shall provide economic benefits to such Member greater than the benefits to which they would be otherwise entitled (or which would be superior to the economic rights of Members in the same class of equity).

Section 14.20 Conflict Waivers. Lippes Mathias LLP ("Counsel") may represent the members of the Company and/or their respective affiliates from time to time in a variety of different matters. Counsel does not represent or owe any duty to any investor in connection with the organization, fundraising and ongoing management of the Company or any of its investments. It is not anticipated, in connection with the organization or operation of the Company, that separate counsel will be engaged by the Company on behalf of the investors.

Section 14.21 Independent Counsel. Each Member has read this Agreement and acknowledges that:

(a) Counsel has prepared this Agreement on behalf of the Company;

(b) Such Member has been advised that a conflict may exist between such Member's interests, the interests of the other Members, and/or the interests of the Company;

(c) This Agreement may have significant legal, financial, and/or tax consequences to such Member;

(d) None of the Company or its Affiliates or Representatives (including counsel) makes or has made any representations to such Member regarding such consequences; and

(e) Such Member has been advised to seek, and has had the full opportunity to seek, the advice of independent counsel and tax or other advisors regarding such consequences.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF the Company has executed this Limited Liability Company Agreement as of the date set forth below.

COMPANY:

ATOMUS KCP INVESTMENTS HOLDINGS LLC

By:_____
Name: Jackson Rimpas
Title: Manager

By:_____
Name: Luke Prendergast
Title: Manager

[COMPANY SIGNATURE PAGE TO LIMITED LIABILITY COMPANY AGREEMENT]

IN WITNESS WHEREOF each Sponsor Member has executed this Limited Liability Company Agreement as of the date set forth below.

SPONSOR MEMBERS:

_____
Jackson Rimpas, Manager

_____
Luke Prendergast, Manager

[SPONSOR MEMBER SIGNATURE PAGE TO LIMITED LIABILITY COMPANY AGREEMENT]

SCHEDULE A
MEMBERS SCHEDULE

[To Be Updated]

Wire Transfer Instructions

Atomus KCP Investments Holdings LLC

Please use the following information to complete your wire transfer:

Banking Information

Institution Name: Newburyport Bank
Address: 63 State St.
City/State/Zip: Newburyport, MA 01950
ABA/Routing Number: 211371502

Account Information

Entity Name: Atomus KCP Investments Holdings LLC
Account Holder: Luke Prendergast
Account Holder Address: 161 High Rd. Newbury, MA 01951
Account Number: 120008441

Please ensure all information is entered correctly to avoid delays in processing.

If you have any questions about this wire transfer, please contact us directly at 978-394-0068.